

THE
GREAT
CONSPIRACY



JOHN A. LOGAN



HART & CO
NEW YORK

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THE GREAT CONSPIRACY

Its Origin and History

Part 1.

*This Volume is dedicated
to the young men of our Country*

John A. Logan

Washington D.C.



Eng^d by H. B. Hall's Sons, New York

John A. Logan

THE
GREAT CONSPIRACY:

Its Origin and History.

BY
JOHN A. LOGAN.

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PREFACE.

In the preparation of this work it has been the writer's aim to present in it, with historical accuracy, authentic facts; to be fair and impartial in grouping them; and to be true and just in the conclusions necessarily drawn from them. While thus striving to be accurate, fair, and just, he has not thought it his duty to mince words, nor to refrain from "calling things by their right names;" neither has he sought to curry favor, in any quarter, by fulsome adulation on the one side, nor undue denunciation on the other, either of the living, or of the dead. But, while tracing the history of the Great Conspiracy, from its obscure birth in the brooding brains of a few ambitious men of the earliest days of our Republic, through the subsequent years of its devolution, down to the evil days of Nullification, and to the bitter and bloody period of armed Rebellion, or contemplating it in its still more recent and, perhaps, more sinister development, of to-day, he has conscientiously dealt with it, throughout, in the clear and penetrating light of the voluminous records so readily accessible at the seat of our National Government. So far as was practicable, he has endeavored to allow the chief characters in that Conspiracy—as well as the Union leaders, who, whether in Executive, Legislative, or Military service, devoted their best abilities and energies to its suppression—to speak for themselves, and thus while securing their own proper places in history, by a process of self-adjustment as it were, themselves to write down that history in their own language. If then there be found within these covers aught which may seem harsh to those directly or indirectly, nearly or remotely, connected with that Conspiracy, he may not unfairly exclaim: "Thou canst not say I did it." If he knows his own heart, the writer can truly declare, with his hand upon it, that it bears neither hatred, malice, nor uncharitableness, to those who, misled by the cunning secrecy of the Conspirators, and without an inkling or even a suspicion of

their fell purposes, went manfully into the field, with a courage worthy of a better cause, and for four years of bloody conflict, believing that their cause was just, fought the armies of the Union, in a mad effort to destroy the best government yet devised by man upon this planet. And, perhaps, none can better understand than he, how hard, how very hard, it must be for men of strong nature and intense feeling, after taking a mistaken stand, and especially after carrying their conviction to the cannon's mouth, to acknowledge their error before the world. Hence, while he has endeavored truly to depict—or to let those who made history at the time help him to depict—the enormity of the offence of the armed Rebellion and of the heresies and plottings of certain Southern leaders precipitating it, yet not one word will be found, herein, condemnatory of those who, with manly candor, soldierly courage, and true patriotism, acknowledged that error when the ultimate arbitrament of the sword had decided against them. On the contrary, to all such as accept, in good faith, the results of the war of the Rebellion, the writer heartily holds out the hand of forgiveness for the past, and good fellowship for the future.

WASHINGTON, D. C.

April 15, 1886.

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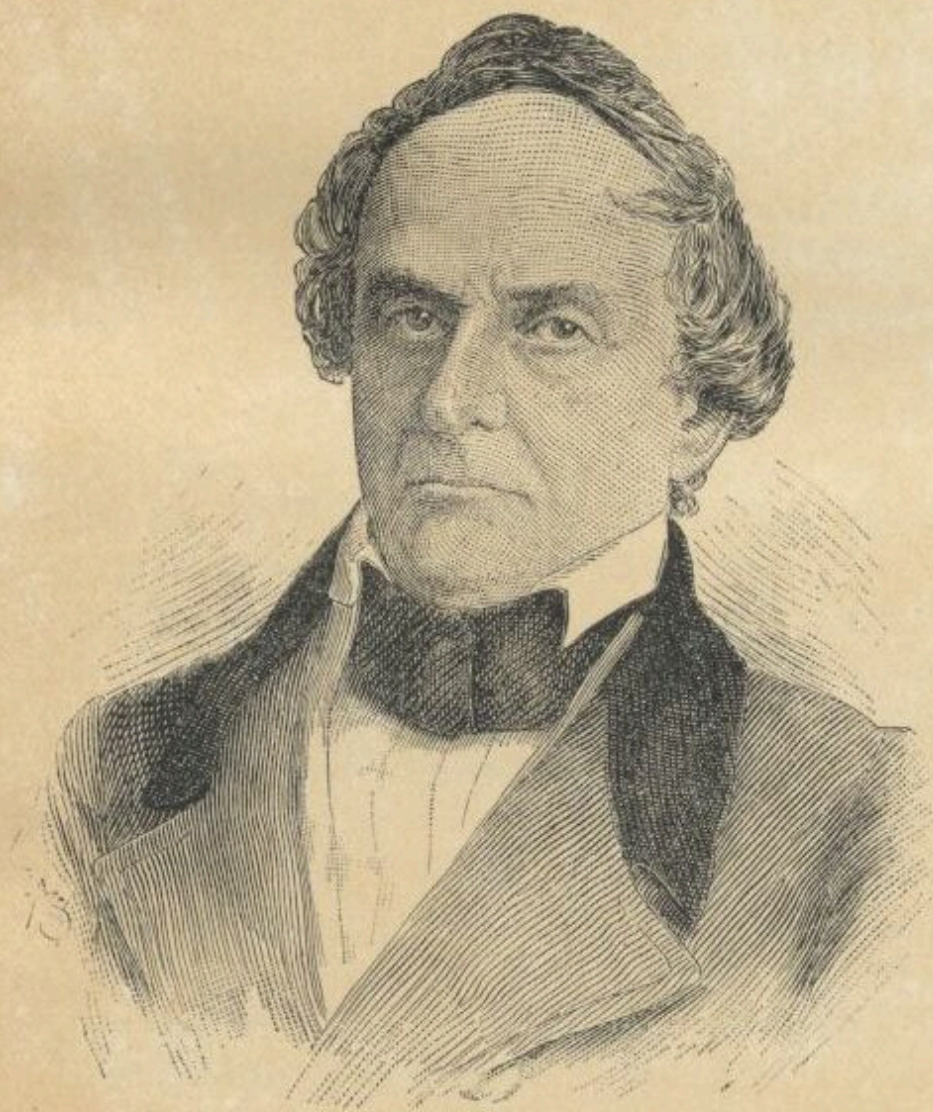
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DANIEL WEBSTER.

PART ONE.

CHAPTER I.

A PRELIMINARY RETROSPECT.

To properly understand the condition of things preceding the great war of the Rebellion, and the causes underlying that condition and the war itself, we must glance backward through the history of the Country to, and even beyond, that memorable 30th of November, 1782, when the Independence of the United States of America was at last conceded by Great Britain. At that time the population of the United States was about 2,500,000 free whites and some 500,000 black slaves. We had gained our Independence of the Mother Country, but she had left fastened upon us the curse of Slavery. Indeed African Slavery had already in 1620 been implanted on the soil of Virginia before Plymouth Rock was pressed by the feet of the Pilgrim Fathers, and had spread, prior to the Revolution, with greater or less rapidity, according to the surrounding adaptations of soil, production and climate, to every one of the thirteen Colonies.

But while it had thus spread more or less throughout all the original Colonies, and was, as it were, recognized and acquiesced in by all, as an existing and established institution, yet there were many, both in the South and North, who looked upon it as an evil—an inherited evil—and were anxious to prevent the increase of that evil. Hence it was that even as far back as 1699, a controversy sprang up between the Colonies and the Home Government, upon the African Slavery question—a controversy continuing with more or less vehemence down to the Declaration of Independence itself.

It was this conviction that it was not alone an evil but a dangerous evil, that induced Jefferson to embody in his original draft of that Declaration a clause strongly condemnatory of the African Slave Trade—a clause

afterward omitted from it solely, he tells us, "in complaisance to South Carolina and Georgia, who had never* attempted to restrain the importation of slaves, and who, on the contrary, still wished to continue it," as well as in deference to the sensitiveness of Northern people, who, though having few slaves themselves, "had been pretty considerable carriers of them to others" a clause of the great indictment of King George III., which, since it was not omitted for any other reason than that just given, shows pretty conclusively that where the fathers in that Declaration affirmed that "all men are created equal," they included in the term "men," black as well as white, bond as well as free; for the clause ran thus: "Determined to keep open a market where MEN should be bought and sold, he has prostituted his negative for suppressing every Legislative attempt to prohibit or to restrain this execrable commerce. And that this assemblage of horrors might want no fact of distinguished dye, he is now exciting those very people to rise in arms among us, and purchase that liberty of which he has deprived them, by murdering the people on whom he also obtruded them; thus paying of former crimes committed against the LIBERTIES of our people with crimes which he urges them to commit against the LIVES of another."

[Prior to 1752, when Georgia surrendered her charter and became a Royal Colony, the holding of slaves within its limits was expressly prohibited by law; and the Darien (Ga.) resolutions of 1775 declared not only a "disapprobation and abhorrence of the unnatural practice of Slavery in America" as "a practice founded in injustice and cruelty, and highly dangerous to our Liberties (as well as lives) but a determination to use our utmost efforts for the manumission of our slaves in this colony upon the most safe and equitable footing for the masters and themselves."]

During the war of the Revolution following the Declaration of Independence, the half a million of slaves, nearly all of them in the Southern States, were found to be not only a source of weakness, but, through the incitements of British emissaries, a standing menace of peril to the Slaveholders. Thus it was that the South was overrun by hostile British armies, while in the North—comparatively free of this element of weakness—disaster after disaster met them. At last, however, in 1782, came the recognition of our Independence, and peace, followed by the evacuation of New York at the close of 1783.

The lessons of the war, touching Slavery, had not been lost upon our statesmen. Early in 1784 Virginia ceded to the United States her claims of jurisdiction and otherwise over the vast territory north-west of the Ohio; and

upon its acceptance, Jefferson, as chairman of a Select Committee appointed at his instance to consider a plan of government therefor, reported to the ninth Continental Congress an Ordinance to govern the territory ceded already, or to be ceded, by individual States to the United States, extending from the 31st to the 47th degree of north latitude, which provided as "fundamental conditions between the thirteen original States and those newly described" as embryo States thereafter—to be carved out of such territory ceded or to be ceded to the United States, not only that "they shall forever remain a part of the United States of America," but also that "after the year 1800 of the Christian era, there shall be neither Slavery nor involuntary servitude in any of the said States"—and that those fundamental conditions were "unalterable but by the joint consent of the United States in Congress assembled, and of the particular State within which such alteration is proposed to be made."

But now a signal misfortune befell. Upon a motion to strike out the clause prohibiting Slavery, six States: New Hampshire, Massachusetts, Rhode Island, Connecticut, New York and Pennsylvania, voted to retain the prohibitive clause, while three States, Maryland, Virginia and South Carolina, voted not to retain it. The vote of North Carolina was equally divided; and while one of the Delegates from New Jersey voted to retain it, yet as there was no other delegate present from that State, and the Articles of Confederation required the presence of "two or more" delegates to cast the vote of a State, the vote of New Jersey was lost; and, as the same Articles required an affirmative vote of a majority of all the States—and not simply of those present—the retention of the clause prohibiting Slavery was also lost. Thus was lost the great opportunity of restricting Slavery to the then existing Slave States, and of settling the question peaceably for all time. Three years afterward a similar Ordinance, since become famous as "the Ordinance of '87," for the government of the North-west Territory (from which the Free States of Ohio, Indiana, Illinois, Michigan and Wisconsin have since been carved and admitted to the Union) was adopted in Congress by the unanimous vote of all the eight States present. And the sixth article of this Ordinance, or "Articles of Compact," which it was stipulated should "forever remain unalterable, unless by common consent," was in these words:

"Art. 6. There shall be neither Slavery nor involuntary servitude in the said Territory, otherwise than in punishment of crimes, whereof the party shall have been duly convicted; provided always that any person escaping into the same from whom labor or service is lawfully claimed in any one of the original States, such fugitive may be lawfully reclaimed, and conveyed to the person claiming his or her labor, or service, as aforesaid."

But this Ordinance of '87, adopted almost simultaneously with the framing of our present Federal Constitution, was essentially different from the Ordinance of three years previous, in this: that while the latter included the territory south of the Ohio River as well as that north-west of it, this did not; and as a direct consequence of this failure to include in it the territory south of that river, the States of Tennessee, Alabama and Mississippi, which were taken out of it, were subsequently admitted to the Union as Slave States, and thus greatly augmented their political power. And at a later period it was this increased political power that secured the admission of still other Slave States—as Florida, Louisiana and Texas—which enabled the Slave States to hold the balance of such power as against the original States that had become Free, and the new Free States of the North-west.

Hence, while in a measure quieting the great question of Slavery for the time being, the Ordinance of '87 in reality laid the ground-work for the long series of irritations and agitations touching its restrictions and extension, which eventually culminated in the clash of arms that shook the Union from its centre to its circumference. Meanwhile, as we have seen—while the Ordinance of 1787 was being enacted in the last Congress of the old Confederation at New York—the Convention to frame the present Constitution was sitting at Philadelphia under the Presidency of George Washington himself. The old Confederation had proved itself to be "a rope of sand." A new and stronger form of government had become a necessity for National existence.

To create it out of the discordant elements whose harmony was essential to success, was an herculean task, requiring the utmost forbearance, unselfishness, and wisdom. And of all the great questions, dividing the framers of that Constitution, perhaps none of them required a higher degree of self abnegation and patriotism than those touching human Slavery.

The situation was one of extreme delicacy. The necessity for a closer and stronger Union of all the States was apparently absolute, yet this very necessity seemed to place a whip in the hands of a few States, with which to coerce the greater number of States to do their bidding. It seemed that the majority must yield to a small minority on even vital questions, or lose everything.

Thus it was, that instead of an immediate interdiction of the African Slave Trade, Congress was empowered to prohibit it after the lapse of twenty years; that instead of the basis of Congressional Representation being the total population of each State, and that of direct taxation the total property of each State, a middle ground was conceded, which regarded the Slaves as both persons and property, and the basis both of Representation and of Direct Taxation was fixed as being the total Free population "plus three-fifths of all other persons" in each State; and that there was inserted in the Constitution a similar clause to that which we have seen was almost simultaneously incorporated in the Ordinance of '87, touching the reclamation and return to their owners of Fugitive Slaves from the Free States into which they may have escaped.

The fact of the matter is, that the Convention that framed our Constitution lacked the courage of its convictions, and was "bulldozed" by the few extreme Southern Slave-holding States—South Carolina and Georgia especially. It actually paltered with those convictions and with the truth itself. Its convictions—those at least of a great majority of its delegates—were against not only the spread, but the very existence of Slavery; yet we have seen what they unwillingly agreed to in spite of those convictions; and they were guilty moreover of the subterfuge of using the terms "persons" and "service or labor" when they really meant "Slaves" and "Slavery." "They did this latter," Mr. Madison says, "because they did not choose to admit the right of property in man," and yet in fixing the basis of Direct Taxation as well as Congressional Representation at the total Free population of each State with "three-fifths of all other persons," they did admit the right of property in man! As was stated by Mr. Iredell to the North Carolina Ratification Convention, when explaining the Fugitive Slave clause: "Though the word 'Slave' is not mentioned, this is the meaning of it." And he added: "The Northern delegates, owing to their peculiar scruples on the subject of Slavery, did not choose the word 'Slave' to be mentioned."

In March, 1789, the first Federal Congress met at New York. It at once enacted a law in accordance with the terms of the Ordinance of '87—adapting it to the changed order of things under the new Federal Constitution—prohibiting Slavery in the Territories of the North-west; and the succeeding Congress enacted a Fugitive-Slave law.

In the same year (1789) North Carolina ceded her western territory (now Tennessee) south of the Ohio, to the United States, providing as one of the conditions of that cession, "that no regulation made, or to be made, by Congress, shall tend to emancipate Slaves." Georgia, also, in 1802, ceded her superfluous territorial domain (south of the Ohio, and now known as Alabama and Mississippi), making as a condition of its acceptance that the Ordinance of '87 "shall, in all its parts, extend to the territory contained in the present act of cession, the article only excepted which forbids Slavery."

Thus while the road was open and had been taken advantage of, at the earliest moment, by the Federal Congress to prohibit Slavery in all the territory north-west of the Ohio River by Congressional enactment, Congress considered itself barred by the very conditions of cession from inhibiting Slavery in the territory lying south of that river. Hence it was that while the spread of Slavery was prevented in the one Section of our outlying territories by Congressional legislation, it was stimulated in the other Section by the enforced absence of such legislation. As a necessary sequence, out of the Territories of the one Section grew more Free States and out of the other more Slave States, and this condition of things had a tendency to array the Free and the Slave States in opposition to each other and to Sectionalize the flames of that Slavery agitation which were thus continually fed.

Upon the admission of Ohio to Statehood in 1803, the remainder of the North-west territory became the Territory of Indiana. The inhabitants of this Territory (now known as the States of Indiana, Illinois, Michigan and Wisconsin), consisting largely of settlers from the Slave States, but chiefly from Virginia and Kentucky, very persistently (in 1803, 1806 and 1807) petitioned Congress for permission to employ Slave Labor, but—although their petitions were favorably reported in most cases by the Committees to which they were referred—without avail, Congress evidently being of opinion that a temporary suspension in this respect of the sixth article of the Ordinance of '87 was "not expedient." These frequent rebuffs by Congress, together with the constantly increasing emigration from the Free States,

prevented the taking of any further steps to implant Slavery on the soil of that Territory.

Meanwhile the vast territory included within the Valley of the Mississippi and known at that day as the "Colony of Louisiana," was, in 1803, acquired to the United States by purchase from the French—to whom it had but lately been retroceded by Spain. Both under Spanish and French rule, Slavery had existed throughout this vast yet sparsely populated region. When we acquired it by purchase, it was already there, as an established "institution;" and the Treaty of acquisition not only provided that it should be "incorporated into the Union of the United States, and admitted as soon as possible, according to the principles of the Federal Constitution," but that its inhabitants in the meantime "should be maintained and protected in the free enjoyment of their liberty, property, and the religion which they professed"—and, as "the right of property in man" had really been admitted in practice, if not in theory, by the framers of that Constitution itself—that institution was allowed to remain there. Indeed the sparseness of its population at the time of purchase and the amazing fertility of its soil and adaptability of its climate to Slave Labor, together with the then recent invention by Eli Whitney, of Massachusetts, of that wonderful improvement in the separation of cotton-fibre from its seed, known as the "cotton-gin"—which with the almost simultaneous inventions of Hargreaves, and Arkwright's cotton-spinning machines, and Watt's application of his steam engine, etc., to them, marvelously increased both the cotton supply and demand and completely revolutionized the cotton industry—contributed to rapidly and thickly populate the whole region with white Slave-holders and black Slaves, and to greatly enrich and increase the power of the former.

When Jefferson succeeded in negotiating the cession of that vast and rich domain to the United States, it is not to be supposed that either the allurements of territorial aggrandizement on the one hand, or the impending danger to the continued ascendancy of the political party which had elevated him to the Presidency, threatening it from all the irritations with republican France likely to grow out of such near proximity to her Colony, on the other, could have blinded his eyes to the fact that its acquisition must inevitably tend to the spread of that very evil, the contemplation of which, at a later day, wrung from his lips the prophetic words, "I tremble for my Country when I reflect that God is just." It is more reasonable to suppose that, as he

believed the ascendancy of the Republican party of that day essential to the perpetuity of the Republic itself, and revolted against being driven into an armed alliance with Monarchical England against what he termed "our natural friend," Republican France, he reached the conclusion that the preservation of his Republican principles was of more immediate moment than the question of the perpetuation and increase of human Slavery. Be that as it may, it none the less remains a curious fact that it was to Jefferson, the far-seeing statesman and hater of African Slavery and the author of the Ordinance of 1784—which sought to exclude Slavery from all the Territories of the United States south of, as well as north-west of the Ohio River—that we also owe the acquisition of the vast territory of the Mississippi Valley burdened with Slavery in such shape that only a War, which nearly wrecked our Republic, could get rid of!

Out of that vast and fertile, but Slave-ridden old French Colony of "Louisiana" were developed in due time the rich and flourishing Slave States of Louisiana, Missouri and Arkansas.

It will have been observed that this acquisition of the Colony of Louisiana and the contemporaneous inventions of the cotton-gin, improved cotton-spinning machinery, and the application to it of steam power, had already completely neutralized the wisdom of the Fathers in securing, as they thought, the gradual but certain extinction of Slavery in the United States, by that provision in the Constitution which enabled Congress, after an interval of twenty years, to prohibit the African Slave Trade; and which led the Congress, on March 22, 1794, to pass an Act prohibiting it; to supplement it in 1800 with another Act in the same direction; and on March 2, 1807, to pass another supplemental Act—to take effect January 1, 1808—still more stringent, and covering any such illicit traffic, whether to the United States or with other countries. Never was the adage that, "The best laid schemes o' mice an' men gang aft agley," more painfully apparent. Slaves increased and multiplied within the land, and enriched their white owners to such a degree that, as the years rolled by, instead of compunctions of conscience on the subject of African Slavery in America, the Southern leaders ultimately persuaded themselves to the belief that it was not only moral, and sanctioned by Divine Law, but that to perpetuate it was a philanthropic duty, beneficial to both races! In fact one of them declared it to be "the highest type of civilization."

In 1812, the State of Louisiana, organized from the purchased Colony of the same name, was admitted to the Union, and the balance of the Louisiana purchase was thereafter known as the Territory of Missouri.

In 1818 commenced the heated and protracted struggle in Congress over the admission of the State of Missouri—created from the Territory of that name—as a Slave State, which finally culminated in 1820 in the settlement known thereafter as the "Missouri Compromise."

Briefly stated, that struggle may be said to have consisted in the efforts of the House on the one side, to restrict Slavery in the State of Missouri, and the efforts of the Senate on the other, to give it free rein. The House insisted on a clause in the Act of admission providing, "That the introduction of Slavery or involuntary servitude be prohibited, except for the punishment of crimes whereof the party has been duly convicted; and that all children born within the said State, after the admission thereof into the Union, shall be declared Free at the age of twenty-five years." The Senate resisted it—and the Bill fell. In the meantime, however, a Bill passed both Houses forming the Territory of Arkansas out of that portion of the Territory of Missouri not included in the proposed State of Missouri, without any such restriction upon Slavery. Subsequently, the House having passed a Bill to admit the State of Maine to the Union, the Senate amended it by tacking on a provision authorizing the people of Missouri to organize a State Government, without restriction as to Slavery. The House decidedly refused to accede to the Senate proposition, and the result of the disagreement was a Committee of Conference between the two Houses, and the celebrated "Missouri Compromise," which, in the language of another—[Hon. John Holmes of Massachusetts, of said Committee on Conference, March 2, 1820.]—, was: "that the Senate should give up its combination of Missouri with Maine; that the House should abandon its attempt to restrict Slavery in Missouri; and that both Houses should concur in passing the Bill to admit Missouri as a State, with" a "restriction or proviso, excluding Slavery from all territory north and west of the new State"—that "restriction or proviso" being in these words: "That in all that territory ceded by France to the United States under the name of Louisiana, which lies north of thirty-six degrees, thirty minutes north latitude, excepting only such part thereof as is included within the limits of the State contemplated by this act, Slavery and involuntary servitude, otherwise than in the punishment of crime, whereof the party shall

have been duly convicted, shall be and is hereby forever prohibited; Provided always, that any person escaping into the same, from whom labor and service is lawfully claimed in any State or Territory of the United States, such Fugitive may be lawfully reclaimed and conveyed to the person claiming his or her labor or service, as aforesaid." At a subsequent session of Congress, at which Missouri asked admission as a State with a Constitution prohibiting her Legislature from passing emancipation laws, or such as would prevent the immigration of Slaves, while requiring it to enact such as would absolutely prevent the immigration of Free Negroes or Mulattoes, a further Compromise was agreed to by Congress under the inspiration of Mr. Clay, by which it was laid down as a condition precedent to her admission as a State—a condition subsequently complied with—that Missouri must pledge herself that her Legislature should pass no act "by which any of the citizens of either of the States should be excluded from the enjoyment of the privileges and immunities to which they are entitled under the Constitution of the United States."

This, in a nut-shell, was the memorable Missouri Struggle, and the "Compromise" or Compromises which settled and ended it. But during that struggle—as during the formation of the Federal Constitution and at various times in the interval when exciting questions had arisen—the bands of National Union were more than once rudely strained, and this time to such a degree as even to shake the faith of some of the firmest believers in the perpetuity of that Union. It was during this bitter struggle that John Adams wrote to Jefferson: "I am sometimes Cassandra enough to dream that another Hamilton, another Burr, may rend this mighty fabric in twain, or perhaps into a leash, and a few more choice spirits of the same stamp might produce as many Nations in North America as there are in Europe."

It is true that we had "sown the wind," but we had not yet "reaped the whirlwind."



STEPHEN A. DOUGLAS.

CHAPTER II.

PROTECTION AND FREE TRADE.

We have seen that the first Federal Congress met at New York in March, 1789. It organized April 6th. None knew better than its members that the war of the Americana Revolution chiefly grew out of the efforts of Great Britain to cripple and destroy our Colonial industries to the benefit of the British trader, and that the Independence conquered, was an Industrial as well as Political Independence; and none knew better than they, that the failure of the subsequent political Confederation of States was due mainly to its failure to encourage and protect the budding domestic manufactures of those States. Hence they hastened, under the leadership of James Madison, to pass "An Act laying a duty on goods, wares and merchandize imported into the United States," with a preamble, declaring it to be "necessary" for the "discharge of the debt of the United States and the encouragement and protection of manufactures." It was approved by President Washington July 4, 1789—a date not without its significance—and levied imports both specific and ad valorem. It was not only our first Tariff Act, but, next to that prescribing the oath used in organizing the Government, the first Act of the first Federal Congress; and was passed in pursuance of the declaration of President Washington in his first Message, that "The safety and interest of the People" required it. Under the inspiration of Alexander Hamilton the Tariff of 1790 was enacted at the second session of the same Congress, confirming the previous Act and increasing some of the protective duties thereby imposed.

An analysis of the vote in the House of Representatives on this Tariff Bill discloses the fact that of the 39 votes for it, 21 were from Southern States, 13 from the Middle States, and 5 from New England States; while of the 13 votes against it, 9 were from New England States, 3 from Southern States, and 1 from Middle States. In other words, while the Southern States were for the Bill in the proportion of 21 to 3, and the Middle States by 13 to 1, New England was against it by 9 to 5; or again, while 10 of the 13 votes against it

were from the New England and Middle States, 21 (or more than half) of the 39 votes for it were from Southern States.

It will thus be seen—singularly enough in view of subsequent events—that we not only mainly owe our first steps in Protective Tariff legislation to the almost solid Southern vote, but that it was thus secured for us despite the opposition of New England. Nor did our indebtedness to Southern statesmen and Southern votes for the institution of the now fully established American System of Protection cease here, as we shall presently see.

That Jefferson, as well as Washington and Madison, agreed with the views of Alexander Hamilton on Protection to our domestic manufactures as against those of foreign Nations, is evident in his Annual Message of December 14, 1806, wherein—discussing an anticipated surplus of Federal revenue above the expenditures, and enumerating the purposes of education and internal improvement to which he thinks the "whole surplus of impost" should during times of peace be applied; by which application of such surplus he prognosticates that "new channels of communication will be opened between the States; the lines of separation will disappear; their interests will be identified, and their Union cemented by new and indissoluble ties"—he says: "Shall we suppress the impost and give that advantage to foreign over domestic manufactures. On a few articles of more general and necessary use, the suppression in due season, will doubtless be right; but the great mass of the articles on which impost is paid is foreign luxuries, purchased by those only who are rich enough to afford themselves the use of them." But his embargo and other retaliatory measures, put in force in 1807 and 1808, and the War of 1812-15 with Great Britain, which closely followed, furnished Protection in another manner, by shutting the door to foreign imports and throwing our people upon their own resources, and contributed greatly to the encouragement and increase of our home manufactures—especially those of wool, cotton, and hemp.

At the close of that War the traders of Great Britain determined, even at a temporary loss to themselves, to glut our market with their goods and thus break down forever, as they hoped, our infant manufactures. Their purpose and object were boldly announced in the House of Commons by Mr. Brougham, when he said: "Is it worth while to incur a loss upon the first importation, in order by the glut to stifle in the cradle those rising manufactures in the United States which the War had forced into existence

contrary to the natural course of things." Against this threatened ruin, our manufacturers all over the United States—the sugar planters of Louisiana among them—clamored for Protection, and Congress at once responded with the Tariff Act of 1816.

This law greatly extended and increased specific duties on, and diminished the application of the ad valorem principle to, foreign imports; and it has been well described as "the practical foundation of the American policy of encouragement of home manufactures—the practical establishment of the great industrial system upon which rests our present National wealth, and the power and the prosperity and happiness of our whole people." While Henry Clay of Kentucky, William Loundes of South Carolina, and Henry St. George Tucker of Virginia supported the Bill most effectively, no man labored harder and did more effective service in securing its passage than John C. Calhoun of South Carolina. The contention on their part was not for a mere "incidental protection" —much less a "Tariff for revenue only"—but for "Protection" in its broadest sense, and especially the protection of their cotton manufactures. Indeed Calhoun's defense of Protection, from the assaults of those from New England and elsewhere who assailed it on the narrow ground that it was inimical to commerce and navigation, was a notable one. He declared that:

"It (the encouragement of manufactures) produced a system strictly American, as much so as agriculture, in which it had the decided advantage of commerce and navigation. The country will from this derive much advantage. Again it is calculated to bind together more closely our wide-spread Republic. It will greatly increase our mutual dependence and intercourse, and will, as a necessary consequence, excite an increased attention to internal improvements—a subject every way so intimately connected with the ultimate attainment of national strength and the perfection of our political institutions."

He regarded the fact that it would make the parts adhere more closely; that it would form a new and most powerful cement far outweighing any political objections that might be urged against the system. In his opinion "the liberty and the union of the country were inseparably united; that as the destruction of the latter would most certainly involve the former, so its maintenance will with equal certainty preserve it;" and he closed with an impressive warning to the Nation of a "new and terrible danger" which threatened it, to wit:

"disunion." Nobly as he stood up then—during the last term of his service in the House of Representatives—for the great principles of, the American System of Protection to manufactures, for the perpetuity of the Union, and for the increase of "National strength," it seems like the very irony of fate that a few years later should find him battling against Protection as "unconstitutional," upholding Nullification as a "reserved right" of his State, and championing at the risk of his neck that very "danger" to the "liberties" and life of his Country against which his prophetic words had already given solemn warning.

Strange was it also, in view of the subsequent attitudes of the South and New England, that this essentially Protective Tariff Act of 1816 should have been vigorously protested and voted against by New England, while it was ably advocated and voted for by the South—the 25 votes of the latter which secured its passage being more than sufficient to have secured its defeat had they been so inclined.

The Tariff Acts of 1824 and 1828 followed the great American principle of Protection laid down and supported by the South in the Act of 1816, while widening, increasing, and strengthening it. Under their operation—especially under that of 1828, with its high duties on wool, hemp, iron, lead, and other staples—great prosperity smiled upon the land, and particularly upon the Free States.

In the cotton-growing belt of the South, however, where the prosperity was relatively less, owing to the blight of Slavery, the very contrast bred discontent; and, instead of attributing it to the real cause, the advocates of Free Trade within that region insisted that the Protective Tariff was responsible for the condition of things existing there.

A few restless and discontented spirits in the South had indeed agitated the subject of Free Trade as against Protected manufactures as early as 1797, and, hand in hand with it, the doctrine of States Rights. And Jefferson himself, although, as we have already seen, attached to the American System of Protection and believing in its Constitutionality, unwittingly played into the hands of these Free Traders by drawing up the famous Kentucky Resolutions of '98 touching States Rights, which were closely followed by the Virginia Resolutions of 1799 in the same vein by Madison, also an out-and-out Protectionist. It was mainly in condemnation of the Alien and

Sedition Laws, then so unpopular everywhere, that these resolutions were professedly fulminated, but they gave to the agitating Free Traders a States-Rights-Secession-weapon of which they quickly availed themselves.

Their drift may be gathered from the first of the Kentucky Resolutions of '98, which was in these words: "Resolved, That the several States composing the United States of America are not united on the principle of unlimited submission to their General Government, but that, by a compact under the style and title of a Constitution for the United States, and of amendments thereto, they constituted a General Government for special purposes—delegated to that Government certain definite powers, reserving, each State to itself, the residuary mass of right to their own self-government; and that whensoever the General Government assumes undelegated powers, its acts are unauthoritative, void, and of no force; that to this compact each State acceded as a State, and as an integral party, its co-States forming, as to itself, the other party; that the Government created by this compact was not made the exclusive or final judge of the extent of the powers delegated to itself; since that would have made its discretion, and not the Constitution, the measure of its powers; but that, as in all other cases of compact among powers having no common judge, each party has an equal right to judge for itself, as well of infractions as of the mode and measure of redress."

The Resolutions, after enumerating the Alien and Sedition and certain other laws as in point, conclude by calling upon the other States to join Kentucky in her opposition to such Federal usurpations of power as thus embodied, and express confidence: "That they will concur with this Commonwealth in considering the said Acts as so palpably against the Constitution as to amount to an undisguised declaration that that compact is not meant to be the measure of the powers of the General Government, but that it will proceed in the exercise over these States, of all powers whatsoever; that they will view this as seizing the rights of the States, and consolidating them in the hands of the General Government, with the power assumed to bind the States (not merely as to the cases made federal (*casus foederis*) but) in all cases whatsoever, by laws made, not with their consent, but by others against their consent; that this would be to surrender the form of government we have chosen, and live under one deriving its powers from its own will, and not from our authority; and that the co-States, returning to their natural rights in cases not made federal, will concur in declaring these

Acts void and of no force, and will each take measures of its own in providing that neither these Acts, nor any others of the General Government, not plainly and intentionally authorized by the Constitution, shall be exercised within their respective territories."

The doctrine of States Rights as formulated in these Resolutions, including the assumed right of a State to nullify laws of the General Government, naturally led up, as we shall see, not only to threats of disunion, but ultimately to a dreadful sectional War waged in the effort to secure it. That Jefferson, when he penned them, foresaw the terrible results to flow from these specious and pernicious doctrines, is not to be supposed for an instant; but that his conscience troubled him may be fairly inferred from the fact that he withheld from the World for twenty years afterward the knowledge that he was their author. It is probable that in this case, as in others, he was a victim of that casuistry which teaches that "the end justifies the means;" that he hoped and believed that the assertion of these baleful doctrines would act solely as a check upon any tendency to further centralization of power in the General Government and insure that strict construction of the Constitution.

Though afterward violated by himself at the same time that he for the moment threw aside his scruples touching African slavery, when he added to our domain the great French Slave Colony of Louisiana—was none the less the great aim of his commanding intellect; and that he fortuitously believed in the "saving common sense" of his race and country as capable of correcting an existing evil when it shall have developed into ill effects.

[Mr. Jefferson takes this very ground, in almost the same words, in his letter, 1803, to Wilson C. Nichols in the Louisiana Colony purchase case, when, after proving by his own strict construction of the Constitution that there was no power in that instrument to make such purchase, and confessing the importance in that very case of setting "an example against broad construction," he concludes: "If, however, our friends shall think differently, certainly I shall acquiesce with satisfaction; confiding that the good sense of the country will correct the evil of construction when it shall produce ill effects."]

Be that as it may, however, the fact remains that the seeds thus sown by the hands of Jefferson on the "sacred soil" of Virginia and Kentucky, were dragon's teeth, destined in after years to spring up as legions of armed men battling for the subversion of that Constitution and the destruction of that Union which he so revered, and which he was so largely instrumental in

founding—and which even came back in his own life to plague him and Madison during his embargo, and Madison's war of 1812-15, in the utterances and attitude of some of the New England Federalists.

The few Free Traders of the South—the Giles's and John Taylor's and men of that ilk—made up for their paucity in numbers by their unscrupulous ingenuity and active zeal. They put forth the idea that the American Protective Policy was a policy of fostering combinations by Federal laws, the effect of which was to transfer a considerable portion of the profits of slave labor from the Slave States to other parts of the Union where it was massed in the hands of a few individuals, and thus created a moneyed interest which avariciously influenced the General Government to the detriment of the entire community of people, who, made restive by the exactions of this power working through the Federal Government, were as a consequence driven to consider a possible dissolution of the Union, and make "estimates of resources and means of defense." As a means also of inflaming both the poor whites and Southern slave-holders by arousing the apprehensions of the latter concerning the "peculiar institution" of Slavery, they craftily declared that "If the maxim advanced by the advocates of the protecting duty system will justify Congress in assuming, or rather in empowering a few capitalists to assume, the direction of manufacturing labor, it also invests that body with a power of legislating for the direction of every other species of labor and assigning all occupations whatsoever to the care of the intelligence of mercenary combinations"—and hence untold misery to labor.

They charged as a further means of firing the Southern heart, that this moneyed power, born of Protection, "works upon the passion of the States it has been able to delude by computations of their physical strength and their naval superiority; and by boasting of an ability to use the weakening circumstance of negro slavery to coerce the defrauded and discontented States into submission." And they declared as fundamental truths upon which they rested that "The Federal is not a National Government; it is a league between nations. By this league, a limited power only over persons and property was given to the representatives of the united nations. This power cannot be further extended, under the pretext of national good, because the league does not create a national government."

It was the passage of the Tariff of 1824 that gave these crafty Free Traders their first great success in spreading their doctrine of Free Trade by coupling it with questions of slave labor, States Rights, and nullification, as laid down in the Kentucky and Virginia resolutions. These arguments created great excitement throughout the South—especially in South Carolina and Georgia—which was still further increased by the passage of the Tariff of 1828, since declared by eminent authority to have been "the highest and most protective ever adopted in this country."

[Mr. Greeley, in his "History of the American Conflict," 1864.]

Prior to the passage of this Tariff Act, excited assemblages met in some of the Southern States, and protested against it as an outrage upon their rights—arraying the South in seditious and treasonable attitude against not only the North but the Union, with threats of Secession. At one of these meetings in South Carolina, in 1827, one of their leaders—[Dr. Thomas Cooper, President of South Carolina College.]—declared that "a drilled and managed majority" in the House of Representatives had determined "at all hazards to support the claims of the Northern manufacturers, and to offer up the planting interest on the altar of monopoly." He denounced the American system of Protection exemplified in that Tariff measure as "a system by which the earnings of the South are to be transferred to the North—by which the many are to be sacrificed to the few—under which powers are usurped that were never conceded—by which inequality of rights, inequality of burthens, inequality of protection, unequal laws, and unequal taxes are to be enacted and rendered permanent—that the planter and the farmer under this system are to be considered as inferior beings to the spinner, the bleacher, and the dyer—that we of the South hold our plantations under this system, as the serfs and operatives of the North, subject to the orders and laboring for the benefit of the master-minds of Massachusetts, the lords of the spinning jenny and peers of the power-loom, who have a right to tax our earnings for their emolument, and to burthen our poverty and to swell their riches;" and after characterizing Protection as "a system of fraud, robbery and usurpation," he continued "I have said that we shall ere long be compelled to calculate the value of our Union; and to enquire of what use to us is this most unequal alliance, by which the South has always been the loser and the North always the gainer. Is it worth our while to continue this union of States, where the North demands to be our masters and we are required to be

their tributaries? who with the most insulting mockery call the yoke they put upon our necks the 'American system!' The question, however, is fast approaching the alternative of submission or separation."

Only a few days after this inflammatory speech at Columbus, S. C., inciting South Carolinians to resist the pending Protective Tariff even to the lengths of Secession, during a grand banquet at Richmond, Va., William B. Giles—another Free Trade leader—proposed, and those present drank a toast to the "Tariff Schemer" in which was embodied a declaration that "The Southerners will not long pay tribute." Despite these turbulent and treasonable mutterings, however, the "Jacksonian Congress" passed the Act—a majority of members from the Cotton and New England States voting against, while the vote of the Middle and Western Free States was almost solidly for, it.

At a meeting held soon after the enactment of the Tariff of 1828, at Walterborough Court House, S. C., an address was adopted and issued which, after reciting the steps that had been taken by South Carolina during the previous year to oppose it, by memorials and otherwise, and stating that, despite their "remonstrances and implorations," a Tariff Bill had passed, not indeed, such as they apprehended, but "ten-fold worse in all its oppressive features," proceeded thus:

"From the rapid step of usurpation, whether we now act or not, the day of open opposition to the pretended powers of the Constitution cannot be far off, and it is that it may not go down in blood that we now call upon you to resist. We feel ourselves standing underneath its mighty protection, and declaring forth its free and recorded spirit, when we say we must resist. By all the great principles of liberty—by the glorious achievements of our fathers in defending them—by their noble blood poured forth like water in maintaining them—by their lives in suffering, and their death in honor and in glory;—our countrymen! we must resist. Not secretly, as timid thieves or skulking smugglers—not in companies and associations, like money chafferers or stock jobbers—not separately and individually, as if this was ours and not our country's cause—but openly, fairly, fearlessly, and unitedly, as becomes a free, sovereign and independent people. Does timidity ask WHEN? We answer NOW!"

These inflammatory utterances, in South Carolina especially, stirred the Southern heart more or less throughout the whole cotton belt; and the pernicious principles which they embodied found ardent advocates even in the Halls of Congress. In the Senate, Mr. Hayne, of South Carolina, was their chief and most vehement spokesman, and in 1830 occurred that memorable debate between him and Daniel Webster, which forever put an end to all reasonable justification of the doctrine of Nullification, and which furnished the ground upon which President Jackson afterward stood in denouncing and crushing it out with the strong arm of the Government.

In that great debate Mr. Hayne's propositions were that the Constitution is a "compact between the States," that "in case of a plain, palpable violation of the Constitution by the General Government, a State may interpose; and that this interposition is constitutional"—a proposition with which Mr. Webster took direct issue, in these words: "I say, the right of a State to annul a law of Congress cannot be maintained, but on the ground of the inalienable right of man to resist oppression; that is to say, upon the ground of revolution. I admit that there is an ultimate violent remedy, above the Constitution and in defiance of the Constitution, which may be resorted to when a revolution is to be justified. But I do not admit that, under the Constitution, and in conformity with it, there is any mode in which a State Government, as a member of the Union, can interfere and stop the progress of the general movement by force of her own laws under any circumstances whatever." Mr. Webster insisted that "one of two things is true: either the laws of the Union are beyond the discretion and beyond the control of the States, or else we have no Constitution of General Government, and are thrust back again to the days of the Confederation;" and, in concluding his powerful argument, he declared that "even supposing the Constitution to be a compact between the States," Mr. Hayne's doctrine was "not maintainable, because, first, the General Government is not a party to the compact, but a Government established by it, and vested by it with the powers of trying and deciding doubtful questions; and secondly, because, if the Constitution be regarded as a compact, not one State only, but all the States are parties to that compact, and one can have no right to fix upon it her own peculiar construction."

While the comparatively miserable condition of the cotton-growing States of the South was attributed by most of the Southern Free Traders solely to the Protective Tariff of 1828, yet there were some Southerners willing to

concede—as did Mr. Hayne, in the Senate (1832)—that there were "other causes besides the Tariff" underlying that condition, and to admit that "Slaves are too improvident, too incapable of that minute, constant, delicate attention, and that persevering industry which are essential to manufacturing establishments," the existence of which would have made those States prosperous. But such admissions were unwilling ones, and the Cotton-lords held only with the more tenacity to the view that the Tariff was the chief cause of their condition.

The Tariff Act of 1832, essentially modifying that of 1828, was passed with a view, in part, to quiet Southern clamor. But the Southern Cotton States refused to be mollified. On the contrary, the Free Traders of South Carolina proceeded to extreme measures, putting in action that which they had before but threatened. On November 19, 1832, the leading men of South Carolina met in Convention, and a few days thereafter—[November 24, 1832]—unanimously passed an Ordinance of Nullification which declared the Tariff Acts of 1828 and 1832 "Unauthorized by the Constitution," and "null, void, and no law, nor binding on this State, its officers, or citizens." The people of the State were forbidden by it to pay, after the ensuing February 1st, the import-duties therein imposed. Under the provisions of the Ordinance, the State Legislature was to pass an act nullifying these Tariff laws, and any appeal to the United States Supreme Court against the validity of such nullifying act was prohibited. Furthermore, in the event of the Federal Government attempting to enforce these Tariff laws, the people of South Carolina would thenceforth consider themselves out of the Union, and will "forthwith proceed to organize a separate Government, and do all other acts and things which sovereign and independent States may of right do."

At the subsequent meeting of the Legislature, Mr. Hayne, who had been a member of the Convention, having resigned his seat in the United States Senate, was elected Governor of the State. He declared in his message that he recognized "No allegiance as paramount to that which the citizens of South Carolina owe to the State of their birth or their adoption"—that doctrine of "paramount allegiance to the State" which in after-years gave so much trouble to the Union and to Union-loving Southerners—and declared that he held himself "bound by the highest of all obligations to carry into effect, not only the Ordinance of the Convention, but every act of the

Legislature, and every judgment of our own Courts, the enforcement of which may devolve upon the Executive," and "if," continued he, "the sacred soil of Carolina should be polluted by the footsteps of an invader, or be stained with the blood of her citizens, shed in her defense, I trust in Almighty God * * * even should she stand alone in this great struggle for constitutional liberty, encompassed by her enemies, that there will not be found, in the wide limits of the State, one recreant son who will not fly to the rescue, and be ready to lay down his life in her defense." In support of the contemplated treason, he even went to the length of calling for an enrolling of volunteer forces and of holding them ready for service.

But while South Carolina stood in this treasonable and defiant attitude, arming for war against the Union, there happened to be in the Presidential chair one of her own sons—General Jackson. Foreseeing what was coming, he had, prior to the meeting of the Convention that framed the Nullification Ordinance, ordered General Scott to Charleston to look after "the safety of the ports of the United States" thereabouts, and had sent to the Collector of that port precise instructions as to his duty to resist in all ways any and all attempts made under such Ordinance to defeat the operation of the Tariff laws aforesaid. Having thus quietly prepared the arm of the General Government for the exercise of its power, he issued in December a Proclamation declaring his unalterable resolution to treat Nullification as Treason—and to crush it.

In that famous document President Jackson said of Nullification: "If this doctrine had been established at an earlier day, the Union would have been dissolved in its infancy. The Excise law in Pennsylvania, the Embargo and Non-intercourse law in the Eastern States, the Carriage-tax in Virginia, were all deemed unconstitutional, and were more unequal in their operation than any of the laws now complained of; but fortunately, none of those States discovered that they had the right now claimed by South Carolina. * * * The discovery of this important feature in our Constitution was reserved for the present day. To the statesmen of South Carolina belongs the invention, and upon the citizens of that State will unfortunately fall the evils of reducing it to practice. * * * I consider, then, the power to annul a law of the United States, assumed by one State, incompatible with the existence of the Union, contradicted expressly by the letter of the Constitution, unauthorized by its spirit, inconsistent with every principle on which it was founded and

destructive of the great object for which it was formed. * * * To say that any State may at pleasure secede from the Union, is to say that the United States are not a Nation, because it would be a solecism to contend that any part of a Nation might dissolve its connection with the other parts, to their injury or ruin, without committing any, offense."

Farther on, in his moving appeal to the South Carolinians, he bids them beware of their leaders: "Their object is disunion; be not deceived by names. Disunion, by armed force, is Treason." And then, reminding them of the deeds of their fathers in the Revolution, he proceeds: "I adjure you, as you honor their memory, as you love the cause of freedom to which they dedicated their lives, as you prize the peace of your country, the lives of its best citizens, and your own fair fame, to retrace your steps. Snatch from the archives of your State the disorganizing edict of its Convention—bid its members to reassemble and promulgate the decided expression of your will to remain in the path which alone can conduct you to safety, prosperity, and honor—tell them that, compared to disunion, all other evils are light, because that brings with it an accumulation of all—declare that you will never take the field unless the Star-spangled banner of your country shall float over you—that you will not be stigmatized when dead, and dishonored and scorned while you live, as the authors of the first attack on the Constitution of your country! Its destroyers you cannot be."

After asserting his firm "determination to execute the laws—to preserve the Union by all constitutional means"—he concludes with the prayer, "May the great Ruler of Nations grant, that the signal blessings with which He has favored, ours may not, by the madness of party, or personal ambition be disregarded and lost; and may His wise providence bring those who have produced this crisis to see the folly before they feel the misery, of civil strife; and inspire a returning veneration for that Union, which, if we may dare to penetrate His designs, He has chosen as the only means of attaining the high destinies to which we may reasonably aspire."

The firm attitude of General Jackson, together with the wise precautionary measures he had already taken, and the practical unanimity with which his declaration to crush out the Treason was hailed in most of the Southern as well as the Northern States, almost at once broke the back of Nullification.

[In this connection the following letter, written at that time by the great Chief Justice Marshall, to a cousin of his, on the subject of State Sovereignty, is of interest, as showing how clearly his penetrating intellect perceived the dangers to the Union hidden in the plausible doctrine of State Rights:

RICHMOND, May 7, 1833.

"MY DEAR SIR:

"I am much indebted to you for your pamphlet on Federal Relations, which I have read with much satisfaction. No subject, as it seems to me, is more misunderstood or more perverted. You have brought into view numerous important historical facts which, in my judgment, remove the foundation on which the Nullifiers and Seceders have erected that superstructure which overshadows our Union. You have, I think, shown satisfactorily that we never have been perfectly distinct, independent societies, sovereign in the sense in which the Nullifiers use the term. When colonies we certainly were not. We were parts of the British empire, and although not directly connected with each other so far as respected government, we were connected in many respects, and were united to the same stock. The steps we took to effect separation were, as you have fully shown, not only revolutionary in their nature, but they were taken conjointly. Then, as now, we acted in many respects as one people. The representatives of each colony acted for all. Their resolutions proceeded from a common source, and operated on the whole mass. The army was a continental army commanded by a continental general, and supported from a continental treasury. The Declaration of Independence was made by a common government, and was made for all the States.

"Everything has been mixed. Treaties made by Congress have been considered as binding all the States. Some powers have been exercised by Congress, some by the States separately. The lines were not strictly drawn. The inability of Congress to carry its legitimate powers into execution has gradually annulled those powers practically, but they always existed in theory. Independence was declared 'in the name and by the authority of the good people of these colonies.' In fact we have always been united in some respects, separate in others. We have acted as one people for some purposes, as distinct societies for others. I think you have shown this clearly, and in so doing have demonstrated the fallacy of the principle on which either nullification or the right of peaceful, constitutional secession is asserted.

"The time is arrived when these truths must be more generally spoken, or our Union is at an end. The idea of complete sovereignty of the State converts our government into a league, and, if carried into practice, dissolves the Union.

"I am, dear sir,

"Yours affectionately,

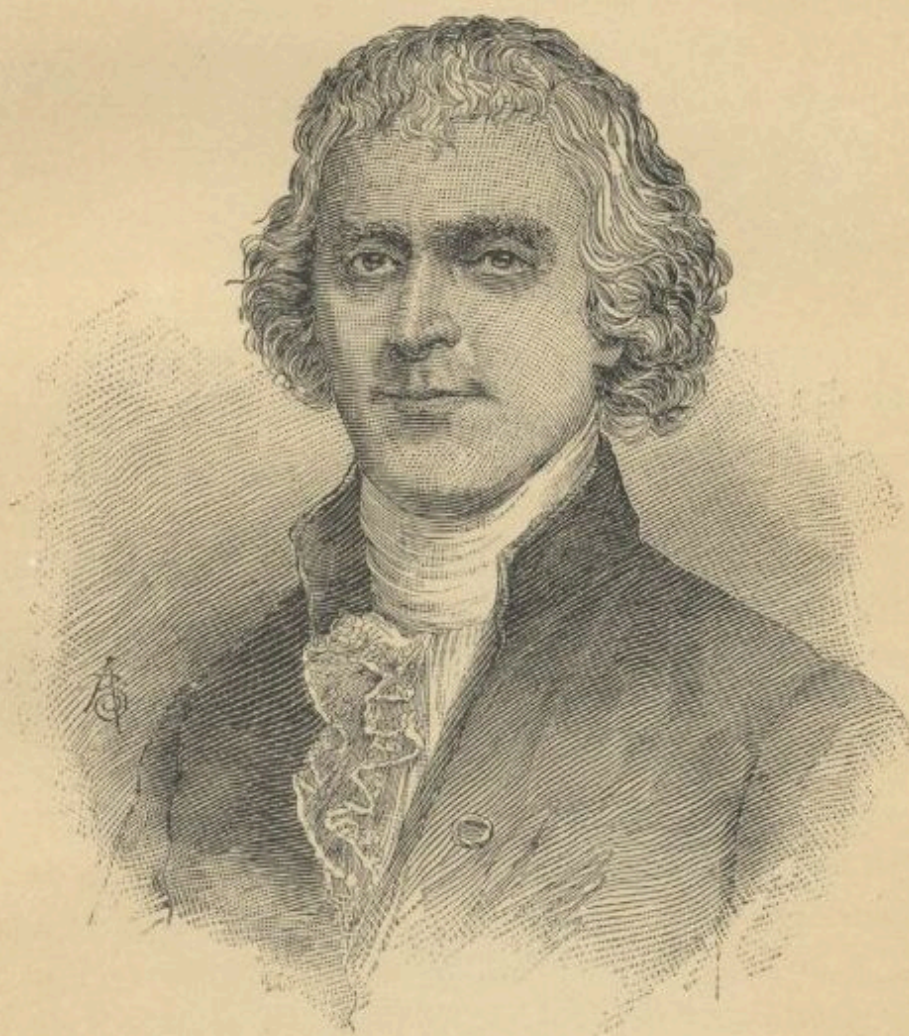
"J. MARSHALL.

"HUMPHREY MARSHALL, ESQ.,

"FRANKFORT, KY."]

The Nullifiers hailed with pretended satisfaction the report from the House Committee on Ways and Means of a Bill making great reductions and equalizations of Tariff duties, as a measure complying with their demands, and postponed the execution of the Ordinance of Nullification until the adjournment of Congress; and almost immediately afterward Mr. Clay's Compromise Tariff Act of 1833 "whereby one tenth of the excess over twenty per cent. of each and every existing impost was to be taken off at the close of that year; another tenth two years thereafter; so proceeding until the 30th of June, 1842, when all duties should be reduced to a maximum of twenty per cent."—[Says Mr. Greeley, in his History aforesaid.]—agreed to by Calhoun and other Nullifiers, was passed, became a law without the signature of President Jackson, and South Carolina once more became to all appearances a contented, law-abiding State of the Union.

But after-events proved conclusively that the enactment of this Compromise Tariff was a terrible blunder, if not a crime. Jackson had fully intended to hang Calhoun and his nullifying coadjutors if they persisted in their Treason. He knew that they had only seized upon the Tariff laws as a pretext with which to justify Disunion, and prophesied that "the next will be the Slavery or Negro question." Jackson's forecast was correct. Free Trade, Slavery and Secession were from that time forward sworn allies; and the ruin wrought to our industries by the disasters of 1840, plainly traceable to that Compromise Tariff measure of 1833, was only to be supplemented by much greater ruin and disasters caused by the Free Trade Tariff of 1846—and to be followed by the armed Rebellion of the Free Trade and Pro-Slavery States of the South in 1861, in a mad attempt to destroy the Union.



THOMAS JEFFERSON.

CHAPTER III.

GROWTH OF THE SLAVERY QUESTION.

It will be remembered that during the period of the Missouri Struggle, 1818-1820, the Territory of Arkansas was formed by an Act of Congress out of that part of the Missouri Territory not included in the proposed State of Missouri, and that the Act so creating the Territory of Arkansas contained no provision restricting Slavery. Early in 1836, the people of Arkansas Territory met in Convention and formed a Constitution under which, "and by virtue of the treaty of cession by France to the United States, of the Province of Louisiana," they asked admission to the Union as a State. Among other provisions of that Constitution was a section rendering the State Legislature powerless to pass laws for the emancipation of slaves without the consent of the owners, or to prevent emigrants to that State from bringing with them slaves. On June 15th of the same year, Arkansas was, under that Constitution, admitted to the Union as a Slave State, with the sole reservation, that nothing in the Act of admission should be" construed as an assent by Congress to all or any of the propositions contained" in the said Constitution.

Long ere this, all the Northern and Middle States had made provision for the emancipation of such slaves as remained within their borders, and only a few years previous (in 1829 and 1831-32) Virginia had made strong but insufficient efforts toward the same end. The failure to free Virginia of Slavery—the effort to accomplish which had been made by some of the greatest of her statesmen—only served to rivet the chains of human bondage more securely throughout all the Slave States, and from that time on, no serious agitation occurred in any one of them, looking toward even the most gradual emancipation. On the other hand, the advocates of the extension of the Slave-Power by the expansion of Slave-territory, were ever on the alert, they considered it of the last importance to maintain the balance of power between the Slave States and the Free States. Hence, while they had secured in 1819 the cession from Spain to the United States of the Slave-holding

Floridas, and the organization of the Slave Territory of Florida in 1822—which subsequently came in as a Slave State under the same Act (1845) that admitted the Free State of Iowa—their greedy eyes were now cast upon the adjoining rich territories of Mexico.

Efforts had (in 1827-1829) been made to purchase from Mexico the domain which was known as Texas. They had failed. But already a part of Texas had been settled by adventurous Americans under Mexican grants and otherwise; and General Sam Houston, an adherent of the Slave Power, having become a leading spirit among them, fomented a revolution. In March, 1836, Texas, under his guidance, proclaimed herself a Republic independent of Mexico.

The War that ensued between Texas and Mexico ended in the flight of the Mexican Army and the capture of Santa Anna at San Jacinto, and a treaty recognizing Texan independence. In October, 1836, General Houston was inaugurated President of the Republic of Texas. Close upon this followed (in August, 1837) a proposition to our Government from the Texan envoy for the annexation of Texas to the United States. President Van Buren declined the offer. The Northern friends of Freedom were as much opposed to this annexation project as the advocates of Slavery were anxious for it. Even such conservative Northern Statesmen as Daniel Webster strongly opposed the project. In a speech delivered in New York [1837], after showing that the chief aim of our Government in the acquisition of the Territory of Louisiana was to gain command of the mouths of the great rivers to the sea, and that in the acquisition of the Floridas our policy was based on similar considerations, Mr. Webster declared that "no such necessity, no such policy, requires the annexation of Texas," and that we ought "for numerous and powerful reasons to be content with our present boundaries. He recognized that Slavery already existed under the guarantees of the Constitution and those guarantees must be fulfilled; that "Slavery, as it exists in the States, is beyond the power of Congress. It is a concern of the States themselves," but "when we come to speak of admitting new States, the subject assumes an entirely different aspect. Our rights and our duties are then both different. The Free States, and all the States, are then at liberty to accept or to reject;" and he added, "In my opinion the people of the United States will not consent to bring into the Union a new, vastly extensive and Slaveholding

country, large enough for a half a dozen or a dozen States. In my opinion, they ought not to consent to it."

Farther on, in the same speech—after alluding to the strong feeling in the Northern States against the extension of Slavery, not only as a question of politics, but of conscience and religious conviction as well—he deems him a rash man indeed "who supposes that a feeling of this kind is to be trifled with or despised." Said he: "It will assuredly cause itself to be respected. It may be reasoned with; it may be made willing—I believe it is entirely willing—to fulfill all existing engagements and all existing duties—to uphold and defend the Constitution as it is established, with whatever regrets about some provisions which it does actually contain. But to coerce it into silence, to endeavor to restrain its free expression, to seek to compress and confine it, warm as it is, and more heated as such endeavors would inevitably render it,—should this be attempted, I know nothing, even in the Constitution or in the Union itself, which would not be endangered by the explosion which might follow."

In 1840, General Harrison, the Whig candidate, was elected to the Presidency, but died within a few weeks after his inauguration in 1841, and was succeeded by John Tyler. The latter favored the Slave Power; and on April 12th, 1844, John C. Calhoun, his Secretary of State, concluded with Texas a treaty of annexation—which was, however, rejected by the Senate. Meanwhile the public mind was greatly agitated over the annexation and other questions.

[In the London Index, a journal established there by Jefferson Davis's agents to support the cause of the rebellious States, a communication appeared during the early part of the war, Dec. 4, 1861, supposed to have been written by Mr. Mason, of Virginia, in which he said: "To tell the Norths, the Butes, the Wedderburns of the present day, that previous to the year 1839 the sovereign States of the South had unalterably resolved on the specific ground of the violation of the Federal Constitution by the tariff of spoliation which the New England States had imposed upon them—to secede from the Union; to tell them that in that year the leader of the South, Calhoun, urged an English gentleman, to whom he had fully explained the position of the South, and the intolerable tyranny which the North inflicted upon it, to be the bearer of credentials from the chief persons of the South, in order to invite the attention of the British Government to the coming event; that on his death-bed (Washington, March 31, 1850), he called around him his political friends—one of whom is now in England—warned them that in no event could the Union survive the Presidential election of 1860, though it might possibly break up before that urged them to be prepared; leaving with his dying words the sacred cause of Southern secession a solemn legacy in their hands—to have told this to the Norths and

Dartmouths of the present day, with more and even stronger evidence of the coming events of November, 1860, would have been like speaking to the stones of the street. In November, 1860, they were thoroughly ignorant of all the momentous antecedents of secession—of their nature, their character, their bearing, import, and consequences."

In the same correspondence the distinguished Rebel emissary substantially let out the fact that Calhoun was indirectly, through himself (Mason), in secret communication with the British Government as far back as 1841, with a view to securing its powerful aid in his aforesaid unalterable resolve to Secede from the Union; and then Mr. Mason pleads—but pleads in vain—for the armed intervention of England at this later day. Said he:

"In the year 1841 the late Sir William Napier sent in two plans for subduing the Union, to the War Office, in the first of which the South was to be treated as an enemy, in the second as a friend and ally. I was much consulted by him as to the second plan and was referred to by name in it, as he showed by the acknowledgment of this in Lord Fitzroy Somerset's letter of reply. This plan fully provided for the contingency of an invasion of Canada, and its application would, in eighteen or twenty months, have reduced the North to a much more impotent condition than it exhibits at present. At this very moment the most difficult portion of that plan has been perfectly accomplished by the South itself; and the North, in accordance with Sir William Napier's expectations, now lies helpless before England, and at our absolute mercy. Nor is there any doubt of this, and if Lord Palmerston is not aware of it Mr. Seward certainly is. We have nothing remaining to do but to stretch out our arm in the way Sir William Napier proposed, and the Northern power—power as we ignorantly call it—must come to an end. Sir William knew and well estimated the elements of which that quasi power consisted; and he knew how to apply the substantive power of England to dissolve it. In the best interest of humanity, I venture to say that it is the duty of England to apply this power without further delay—its duty to itself, to its starving operatives, to France, to Europe, and to humanity. And in the discharge of this great duty to the world at large there will not even be the dignity of sacrifice or danger."]

Threats and counter-threats of Disunion were made on either hand by the opponents and advocates of Slavery-extension through annexation; nor was it less agitated on the subject of a Protective Tariff.

The Compromise Tariff of 1833, together with President Jackson's upheaval of our financial system, produced, as has already been hinted, terrible commercial disasters. "In 1840," says competent authority, "all prices had ruinously fallen; production had greatly diminished, and in many departments of industry had practically ceased; thousands of working men were idle, with no hope of employment, and their families suffering from want. Our farmers were without markets, their products rotted in their barns, and their lands, teeming with rich harvests, were sold by the sheriff for debts and taxes. The Tariff, which robbed our industries of Protection failed to

supply Government with its necessary revenues. The National Treasury in consequence was bankrupt, and the credit of the Nation had sunk very low."

Mr. Clay himself stated "the average depression in the value of property under that state of things which existed before the Tariff of 1842 came to the rescue of the country, at fifty per cent." And hence it was that Protection was made the chief issue of the Presidential campaign of 1840, which eventuated in the election of Harrison and Tyler, and in the Tariff Act of August 30, 1842, which revived our trade and industries, and brought back to the land a full measure of prosperity. With those disasters fresh in the minds of the people, Protection continued to be a leading issue in the succeeding Presidential campaign of 1844—but coupled with the Texas-annexation issue. In that campaign Henry Clay was the candidate of the Whig party and James K. Polk of the Democratic party. Polk was an ardent believer in the annexation policy and stood upon a platform declaring for the "re-occupation of Oregon and the re-annexation of Texas at the earliest practicable moment"—as if the prefix "re" legitimized the claim in either case; Clay, on the other hand, held that we had "fairly alienated our title to Texas by solemn National compacts, to the fulfilment of which we stand bound by good faith and National honor;" that "Annexation and War with Mexico are identical," and that he was "not willing to involve this country in a foreign War for the object of acquiring Texas."

[In his letter of April 17, 1844, published in the National Intelligencer.]

As to the Tariff issue also, Clay was the acknowledged champion of the American system of Protection, while Polk was opposed to it, and was supported by the entire Free-trade sentiment, whether North or South.

As the campaign progressed, it became evident that Clay would be elected. Then occurred some of those fatalities which have more than once, in the history of Presidential campaigns, overturned the most reasonable expectations and defeated the popular will. Mr. Clay committed a blunder and Mr. Polk an equivocation—to use the mildest possible term. Mr. Clay was induced by Southern friends to write a letter—[Published in the North Alabamian, Aug. 16, 1844.]—in which, after stating that "far from having any personal objection to the annexation of Texas, I should be glad to see it—without dishonor, without War, with the common consent of the Union, and upon just and fair terms," he added: "I do not think that the subject of

Slavery ought to affect the question, one way or the other." Mr. Polk, on the other hand, wrote a letter in which he declared it to be "the duty of the Government to extend, as far as it may be practicable to do so, by its revenue laws and all other means within its power, fair and just Protection to all the great interests of the whole Union, embracing Agriculture, Manufactures, the Mechanic Arts, Commerce and Navigation." This was supplemented by a letter (August 8, 1844) from Judge Wilson McCandless of Pennsylvania, strongly upholding the Protective principle, claiming that Clay in his Compromise Tariff Bill had abandoned it, and that Polk and Dallas had "at heart the true interests of Pennsylvania." Clay, thus betrayed by the treachery of Southern friends, was greatly weakened, while Polk, by his beguiling letter, backed by the false interpretation put upon it by powerful friends in the North, made the North believe him a better Protectionist than Clay.

Polk was elected, and rewarded the misplaced confidence by making Robert J. Walker his Secretary of the Treasury, and, largely through that great Free Trader's exertions, secured a repeal by Congress of the Protective Tariff of 1842 and the enactment of the ruinous Free Trade Tariff of 1846. Had Clay carried New York, his election was secure. As it happened, Polk had a plurality in New York of but 5,106 in an immense vote, and that slim plurality was given to him by the Abolitionists throwing away some 15,000 on Birney. And thus also it curiously happened that it was the Abolition vote which secured the election of the candidate who favored immediate annexation and the extension of the Slave Power!

Emboldened and apparently sustained by the result of the election, the Slave Power could not await the inauguration of Mr. Polk, but proceeded at once, under whip and spur, to drive the Texas annexation scheme through Congress; and two days before the 4th of March, 1845, an Act consenting to the admission of the Republic of Texas as a State of the Union was approved by President Tyler.

In that Act it was provided that "New States of convenient size, not exceeding four in number, in addition to the said State of Texas, and having sufficient population, may hereafter, by the consent of said State, be formed out of the territory thereof, which shall be entitled to admission under the provisions of the Federal Constitution; and such States as may be formed out of that portion of said territory lying south of thirty-six degrees thirty minutes north latitude, commonly known as the Missouri Compromise line,

shall be admitted into the Union with or without Slavery, as the people of each State asking admission may desire. And in such State or States as shall be formed out of said territory north of said Missouri Compromise line, Slavery or involuntary servitude (except for crime) shall be prohibited." As has been lucidly stated by another,—[Greeley's History]—"while seeming to curtail and circumscribe Slavery north of the above parallel (that of 36 30' north latitude), this measure really extended it northward to that parallel, which it had not yet approached, under the flag of Texas, within hundreds of miles. But the chief end of this sham Compromise was the involving of Congress in an indirect indorsement of the claim of Texas to the entire left bank of the Rio Grande, from its mouth to its source; and this was effected."

Texas quickly consented to the Act of annexation, and in December, 1845, a Joint Resolution formally admitting her as a State of the Union, reported by Stephen A. Douglas, was duly passed.

In May, 1846, the American forces under General Taylor, which had been dispatched to protect Texas from threatened assault, were attacked by the Mexican army, which at Palo Alto was badly defeated and at Resaca de la Palma driven back across the Rio Grande.

Congress immediately declared that by this invasion a state of War existed between Mexico and the United States. Thus commenced the War with Mexico—destined to end in the triumph of the American Army, and the acquisition of large areas of territory to the United States. In anticipation of such triumph, President Polk lost little time in asking an appropriation of over two million dollars by Congress to facilitate negotiations for peace with, and territorial cession from, Mexico. And a Bill making such appropriation was quickly passed by the House of Representatives—but with the following significant proviso attached, which had been offered by Mr. Wilmot: "Provided. That as an express and fundamental condition to the acquisition of any territory from the Republic of Mexico by the United States, by virtue of any treaty that may be negotiated between them, and to the use by the Executive of the moneys herein appropriated, neither Slavery nor involuntary servitude shall ever exist in any part of said territory, except for crime, whereof the party shall first be duly convicted."

The debate in the Senate upon the Wilmot proviso, which immediately ensued, was cut short by the expiration of the Session of Congress—and the

Bill accordingly failed of passage.

In February, 1848, the treaty of Guadalupe Hidalgo was made between Mexico and the United States, and Peace reigned once more. About the same time a Bill was passed by the Senate providing Territorial Governments for Oregon, California and New Mexico, which provided for the reference of all questions touching Slavery in such Territories to the United States Supreme Court, for arbitration. The Bill, however, failed in the House. The ensuing Presidential campaign resulted in the election of General Taylor, the Whig candidate, who was succeeded upon his death, July 10, 1850, by Fillmore. Meanwhile, on the Oregon Territory Bill, in 1848, a strong effort had been made by Mr. Douglas and others to incorporate a provision extending to the Pacific Ocean the Missouri Compromise line of 36 30' of north latitude and extending to all future organizations of Territories of the United States the principles of said Compromise. This provision was adopted by the Senate, but the House struck it from the Bill; the Senate receded, and Oregon was admitted as a Free Territory. But the conflict in Congress between those who would extend and those who would restrict Slavery still continued, and indeed gathered vehemence with time. In 1850, California was clamoring for admission as a Free State to the Union, and New Mexico and Utah sought to be organized under Territorial Governments.

In the heated discussions upon questions growing out of bills for these purposes, and to rectify the boundaries of Texas, it was no easy matter to reach an agreement of any sort. Finally, however, the Compromise of 1850, offered by Mr. Clay, was practically agreed to and carried out, and under it: California was admitted as a Free State; New Mexico and Utah were admitted to Territorial organization without a word pro or con on the subject of Slavery; the State of Texas was awarded a pecuniary compensation for the rectification of her boundaries; the Slave Trade in the District of Columbia was abolished; and a more effectual Fugitive Slave Act passed.

By both North and South, this Compromise of 1850, and the measures growing out of it, were very generally acquiesced in, and for a while it seemed as though a permanent settlement of the Slavery question had been reached. But in the Fugitive Slave law, thus hastily enacted, lay embedded the seed for further differences and excitements, speedily to germinate. In its operation it proved not only unnecessarily cruel and harsh, in the manner of the return to bondage of escaped slaves, but also afforded a shield and

support to the kidnapping of Free Negroes from Northern States. The frequency of arrests in the Northern States, and the accompanying circumstances of cruelty and brutality in the execution of the law, soon made it especially odious throughout the North, and created an active feeling of commiseration for the unhappy victims of the Slave Power, which greatly intensified and increased the growing Anti-Slavery sentiment in the Free States.

In 1852-53, an attempt was made in Congress to organize into the Territory of Nebraska, the region of country lying west of Iowa and Missouri. Owing to the opposition of the South the Bill was defeated. In 1853-4 a similar Bill was reported to the Senate by Mr. Douglas, but afterward at his own instance recommitted to the Committee on Territories, and reported back by him again in such shape as to create, instead of one, two Territories, that portion directly west of Missouri to be called Kansas, and the balance to be known as Nebraska—one of the sections of the Bill enacting:

"That in order to avoid all misconstruction it is hereby declared to be the true intent and meaning of this Act, so far as the question of Slavery is concerned, to carry into practical operation the following propositions and principles, established by the Compromise measures of 1850, to wit:

"First, That all questions pertaining to Slavery in the Territories, and the new States to be formed therefrom, are to be left to the decision of the people residing therein through their appropriate representatives.

"Second, That 'all cases involving title to slaves,' and 'questions of personal freedom,' are referred to the adjudication of the local tribunals with the right of appeal to the Supreme Court of the United States.

"Third, That the provisions of the Constitution and laws of the United States, in respect to fugitives from service, are to be carried into faithful execution in all the `organized Territories,' the same as in the States."

The sections authorizing Kansas and Nebraska to elect and send delegates to Congress also prescribed:

"That the Constitution, and all laws of the United States which are not locally inapplicable, shall have the same force and effect within the said

Territory, as elsewhere in the United States, except the section of the Act preparatory to the admission of Missouri into the Union, approved March 6th, 1820, which was superseded by the principles of the Legislation of 1850, commonly called the Compromise Measures, and is declared inoperative."

And when "explaining this Kansas-Nebraska Bill" Mr. Douglas announced that, in reporting it, "The object of the Committee was neither to legislate Slavery in or out of the Territories; neither to introduce nor exclude it; but to remove whatever obstacle Congress had put there, and apply the doctrine of Congressional Non-intervention in accordance with the principles of the Compromise Measures of 1850, and allow the people to do as they pleased upon this as well as all other matters affecting their interests."

A vigorous and able debate ensued. A motion by Mr. Chase to strike out the words "which was superseded by the principles of the legislation of 1850, commonly called the Compromise Measures," was defeated decisively. Subsequently Mr. Douglas moved to strike out the same words and insert in place of them, these: "which being inconsistent with the principles of Non-intervention by Congress with Slavery in the States and Territories, as recognized by the legislation of 1850 (commonly called the Compromise Measures), is hereby declared inoperative and void; it being the true intent and meaning of this Act not to legislate Slavery into any Territory or State, nor to exclude it therefrom, but to leave the people thereof perfectly free to form and regulate their domestic institutions in their own way, subject only to the Constitution of the United States"—and the motion was agreed to by a vote of 35 yeas to 10 nays. Mr. Chase immediately moved to add to the amendment just adopted these words: "Under which, the people of the Territory, through their appropriate representatives, may, if they see fit, prohibit the existence of Slavery therein;" but this motion was voted down by 36 nays to 10 yeas. This developed the rat in the meal-tub. The people were to be "perfectly free" to act either way on the subject of Slavery, so long as they did not prohibit Slavery! In this shape the Bill passed the Senate.

Public sentiment in the North was greatly stirred by this direct attempt to repeal the Missouri Compromise. But by the superior parliamentary tactics of Southern Representatives in the House, whereby the radical friends of

Freedom were shut out from the opportunity of amendment, a House Bill essentially the same as the Senate Bill was subsequently passed by the House, under the previous question, and afterward rapidly passed the Senate, and was approved by the President. At once commenced that long and terrible struggle between the friends of Free-Soil and the friends of Slavery, for the possession of Kansas, which convulsed the whole Country for years, and moistened the soil of that Territory with streams of blood, shed in numerous "border-ruffian" conflicts.

The Territorial Government of Kansas was organized late in 1854, and an "election" for Delegate held, at which the Pro-Slavery candidate (Whitfield) was fraudulently elected. On March 30, 1855, a Territorial Legislature was similarly chosen by Pro-Slavery voters "colonized" from Missouri. That Legislature, upon its meeting, proceeded at once to enact most outrageous Pro-Slavery laws, which being vetoed by the Free-Soil Governor (Reeder), were passed over the veto, and the Free-Soil Governor had to give place to one who favored Slavery in Kansas. But the Free-Soil settlers of Kansas, in Mass Convention at Big Springs, utterly repudiated the bogus Legislature and all its acts, to which they refused submission.

In consequence of these radical differences, two separate elections for Delegate in Congress were held by the opposing factions, at one of which was elected the Pro-Slavery Whitfield, and at the other the Free-Soiler Reeder. Furthermore, under a call issued by the Big Springs Convention, a Free-State Constitutional Convention was held in October, 1855, at Topeka, which framed a Free-State Constitution, and asked admission under it to the Union.

In 1856, the House of Representatives—which, after a protracted struggle, had elected N. P. Banks Speaker—passed a Bill, by a bare majority, admitting Kansas under her Topeka Constitution; but the Senate defeated it. July 4, 1856, by order of President Pierce, the Free-State Legislature, chosen under the Topeka Constitution to meet at Topeka, was dispersed by United States Troops. Yet, despite all oppositions, discouragements, and outrages, the Free-State population of Kansas continued to increase from immigration.

In 1857, the Pro-Slavery Legislature elected by the Pro-Slavery voters at their own special election—the Free-State voters declining to participate—called a Constitutional Convention at Lecompton, which formed a Pro-

Slavery Constitution. This was submitted to the people in such dexterous manner that they could only vote "For the Constitution with Slavery" or "For the Constitution without Slavery"—and, as the Constitution prescribed that "the rights of property in Slaves now in the Territory, shall in no manner be interfered with," to vote "for the Constitution Without Slavery" was an absurdity only paralleled by the course of the United States Senate in refusing to permit the people of Kansas "to prohibit Slavery" while at the same time declaring them "perfectly free to act" as they chose in the matter.

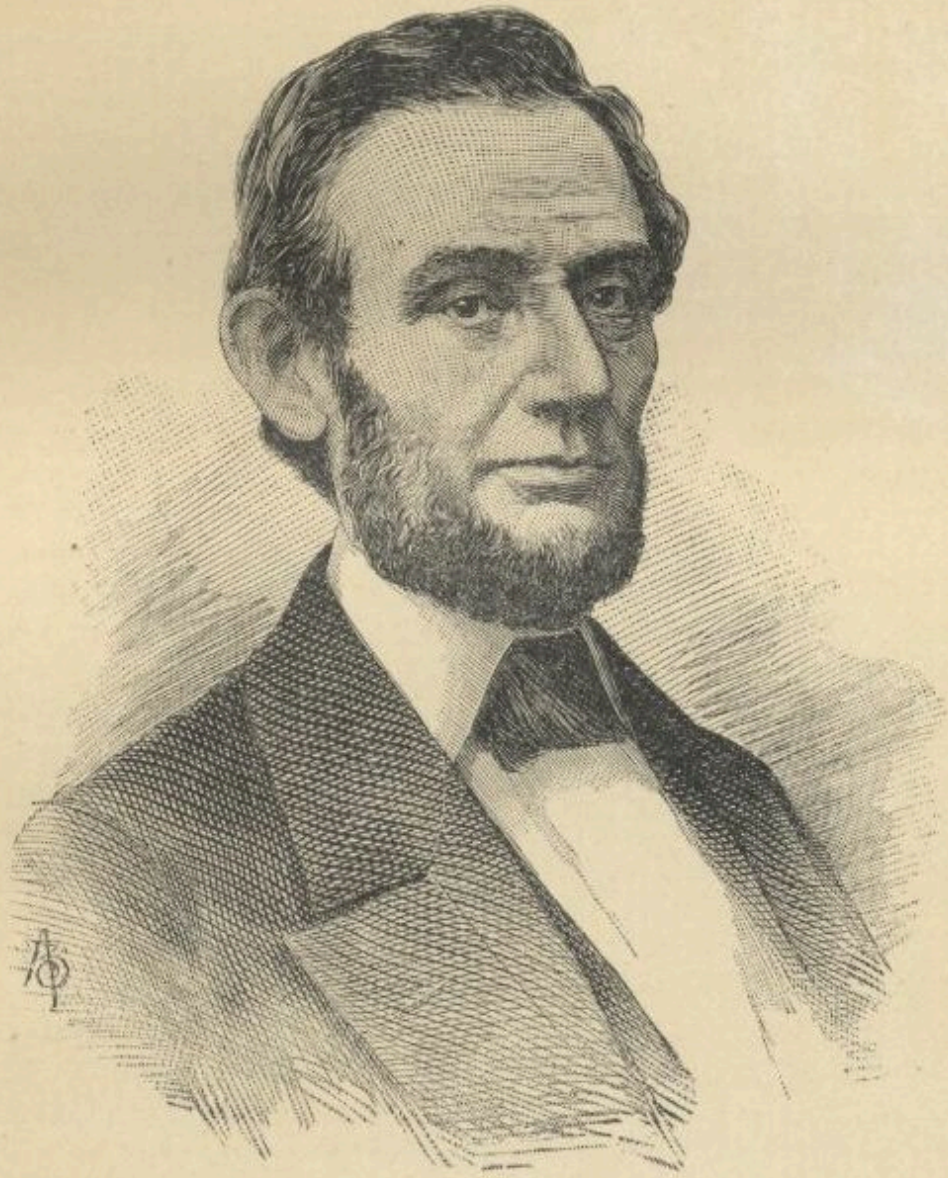
The Constitution, with Slavery, was thus adopted by a vote of over 6,000. But in the meanwhile, at another general election held for the purpose, and despite all the frauds perpetrated by the Pro-Slavery men, a Free-State Legislature, and Free-State Delegate to Congress had been elected; and this Legislature submitted the Lecompton Pro-Slavery Constitution to the people, January 4, 1858, so that they could vote: "For the Lecompton Constitution with Slavery," "For the Lecompton Constitution without Slavery," or "Against the Lecompton Constitution." The consequence was that the Lecompton Constitution was defeated by a majority of over 10,000 votes—the Missouri Pro-Slavery colonists declining to recognize the validity of any further election on the subject.

Meanwhile, in part upon the issues growing out of this Kansas conflict, the political parties of the Nation had passed through another Presidential campaign (1856), in which the Democratic candidate Buchanan had been elected over Fremont the "Republican," and Fillmore the "American," candidates. Both Houses of Congress being now Democratic, Mr. Buchanan recommended them to accept and ratify the Lecompton Pro-Slavery Constitution.

In March, 1858, the Senate passed a Bill—against the efforts of Stephen A. Douglas—accepting it. In the House, however, a substitute offered by Mr. Montgomery (Douglas Democrat) known as the Crittenden-Montgomery Compromise, was adopted. The Senate refused to concur, and the report of a Committee of Conference—providing for submitting to the Kansas people a proposition placing limitations upon certain public land advantages stipulated for in the Lecompton Constitution, and in case they rejected the proposition that another Constitutional Convention should be held—was adopted by both Houses; and the proposition being rejected by the people of Kansas, the Pro-Slavery Lecompton Constitution fell with it.

In 1859 a Convention, called by the Territorial Legislature for the purpose, met at Wyandot, and framed a Free State Constitution which was adopted by the people in October of that year, and at the ensuing State election in December the State went Republican. In April, 1860, the House of Representatives passed a Bill admitting Kansas as a State under that Constitution, but the Democratic Senate adjourned without action on the Bill; and it was not until early in 1861 that Kansas was at last admitted.

In the meantime, the Free Trade Tariff of 1846 had produced the train of business and financial disasters that its opponents predicted. Instead of prosperity everywhere in the land, there was misery and ruin. Even the discovery and working of the rich placer mines of California and the consequent flow, in enormous volume, of her golden treasure into the Eastern States, could not stay the wide-spread flood of disaster. President Fillmore, who had succeeded General Taylor on the latter's death, frequently called the attention of Congress to the evils produced by this Free Trade, and to the necessity of protecting our manufactures "from ruinous competition from abroad." So also with his successor, President Buchanan, who, in his Message of 1857, declared that "In the midst of unsurpassed plenty in all the productions and in all the elements of national wealth, we find our manufactures suspended, our public works retarded, our private enterprises of different kinds abandoned, and thousands of useful laborers thrown out of employment and reduced to want." Further than this, the financial credit of the Nation was at zero. It was financially bankrupt before the close of Buchanan's Presidential term.



ABRAHAM LINCOLN.

CHAPTER IV.

POPULAR SOVEREIGNTY.

But now occurred the great Presidential struggle of 1860—which involved not alone the principles of Protection, but those of human Freedom, and the preservation of the Union itself—between Abraham Lincoln of Illinois, the candidate of the Republican party, as against Stephen A. Douglas of Illinois, the National or Douglas—Democratic candidate, John C. Breckinridge of Kentucky, the Administration or Breckinridge—Democratic candidate, and John Bell of Tennessee, the candidate of the Bell-Union party. The great preliminary struggle which largely influenced the determination of the Presidential political conflict of 1860, had, however, taken place in the State of Illinois, two years previously. To that preliminary political contest of 1858, therefore, we will now turn our eyes—and, in order to fully understand it, it may be well to glance back over a few years. In 1851 the Legislature of Illinois had adopted—[The vote in the House being 65 yeas to 4 nays.]—the following resolution: "Resolved, That our Liberty and Independence are based upon the right of the people to form for themselves such a government as they may choose; that this great principle, the birthright of freemen, the gift of Heaven, secured to us by the blood of our ancestors, ought to be secured to future generations, and no limitation ought to be applied to this power in the organization of any Territory of the United States, of either Territorial Government or State Constitution, provided the government so established shall be Republican and in conformity with the Constitution of the United States." This resolution was a practical endorsement of the course of Stephen A. Douglas in supporting the Compromise measures of 1850, which he had defended as being "all founded upon the great principle that every people ought to possess the right to form and regulate their own domestic institutions in their own way," and that "the same principle" should be "extended to all of the Territories of the United States."

In accordance with his views and the resolution aforesaid, Mr. Douglas in 1854, as we have already seen, incorporated in the Kansas-Nebraska Bill a clause declaring it to be "the true intent and meaning of the Act not to legislate Slavery into any State or Territory, or to exclude it therefrom, but to leave the people thereof perfectly free to form and regulate their domestic institutions in their own way, subject only to the Constitution of the United States."

His position, as stated by himself, was, substantially that the Lecompton Pro-Slavery Constitution was a fraud upon the people of Kansas, in that it did not embody the will of that people; and he denied the right of Congress to force a Constitution upon an unwilling people—without regard, on his part, to whether that Constitution allowed or prohibited Slavery or any other thing, whether good or bad. He held that the people themselves were the sole judges of whether it is good or bad, and whether desirable or not.

The Supreme Court of the United States had in the meantime made a decision in a case afterward known as the "Dred Scott case," which was held back until after the Presidential election of 1856 had taken place, and added fuel to the political fire already raging. Dred Scott was a Negro Slave. His owner voluntarily took him first into a Free State, and afterward into a Territory which came within the Congressional prohibitive legislation aforesaid. That decision in brief was substantially that no Negro Slave imported from Africa, nor his descendant, can be a citizen of any State within the meaning of the Constitution; that neither the Congress nor any Territorial Legislature has under the Constitution of the United States, the power to exclude Slavery from any Territory of the United States; and that it is for the State Courts of the Slave State, into which the negro has been conveyed by his master, and not for the United States Courts, to decide whether that Negro, having been held to actual Slavery in a Free State, has, by virtue of residence in such State, himself become Free.

Now it was, that the meaning of the words, "subject only to the Constitution," as used in the Kansas-Nebraska Act, began to be discerned. For if the people of a Territory were to be "perfectly free," to deal with Slavery as they chose, "subject only to the Constitution" they were by this Judicial interpretation of that instrument "perfectly free" to deal with Slavery in any way so long as they did not attempt "to exclude" it! The thing was all one-sided. Mr. Douglas's attitude in inventing the peculiar phraseology in the

Kansas-Nebraska Act—which to some seemed as if expressly "made to order" for the Dred Scott decision—was criticized with asperity; the popularity, however, of his courageous stand against President Buchanan on the Lecompton fraud, seemed to make it certain that, his term in the United States Senate being about to expire, he would be overwhelmingly re-elected to that body.

But at this juncture occurred something, which for a long time held the result in doubt, and drew the excited attention of the whole Nation to Illinois as the great battle-ground. In 1858 a Republican State Convention was held at Springfield, Ill., which nominated Abraham Lincoln as the Republican candidate for United States Senator to succeed Senator Douglas in the National Legislature. On June 16th—after such nomination—Mr. Lincoln made to the Convention a speech—in which, with great and incisive power, he assailed Mr. Douglas's position as well as that of the whole Democratic Pro-Slavery Party, and announced in compact and cogent phrase, from his own point of view, the attitude, upon the Slavery question, of the Republican Party.

In that remarkable speech—which at once attracted the attention of the Country—Mr. Lincoln said: "We are now far into the fifth year, since a policy was initiated with the avowed object, and confident promise, of putting an end to Slavery agitation. Under the operation of that policy, that agitation has not only not ceased, but has constantly augmented. In my opinion it will not cease, until a crisis shall have been reached and passed. 'A House divided against itself cannot stand.' I believe this Government cannot endure permanently half Slave and half Free. I do not expect the Union to be dissolved—I do not expect the House to fall—but I do expect it will cease to be divided. It will become all one thing, or all the other. Either the opponents of Slavery will arrest the further spread of it, and place it where the public mind shall rest in the belief that it is in the course of ultimate extinction; or its advocates will push it forward, till it shall become alike lawful in all the States, old as well as new, North as well as South."

[Governor Seward's announcement of an "irrepressible conflict" was made four months later.]

He then proceeded to lay bare and closely analyze the history of all that had been done, during the four years preceding, to produce the prevailing

condition of things touching human Slavery; describing it as resulting from that, "now almost complete legal combination-piece of machinery, so to speak—compounded of the Nebraska doctrine and the Dred Scott decision." After stating the several points of that decision, and that the doctrine of the "Sacred right of self-government" had been perverted by the Nebraska "Squatter Sovereignty," argument to mean that, "if any one man chose to enslave another, no third man shall be allowed to object," he proceeded to show the grounds upon which he charged "pre-concert" among the builders of that machinery. Said he: "The people were to be left perfectly free, 'subject only to the Constitution.' What the Constitution had to do with it, outsiders could not see. Plainly enough now, it was an exactly fitted niche for the Dred Scott decision to afterward come in and declare the perfect freedom of the people to be just no freedom at all. Why was the amendment, expressly declaring the right of the people, voted down? Plainly enough now, the adoption of it would have spoiled the niche for the Dred Scott decision. Why was the Court decision held up? Why even a Senator's individual opinion withheld, till after the Presidential election? Plainly enough now: the speaking out then would have damaged the 'perfectly free' argument upon which the election was to be carried. Why the outgoing President's felicitation on the indorsement? Why the delay of a re-argument? Why the incoming President's advance exhortation in favor of the decision? These things look like the cautious patting and petting of a spirited horse, preparatory to mounting him, when it is dreaded that he may give the rider a fall. And why the hasty after-indorsement of the decision, by the President and others? We cannot absolutely know that all these exact adaptations are the result of pre-concert. But when we see a lot of framed timbers, different portions of which we know have been gotten out at different times and places and by different workmen—Stephen, Franklin, Roger, and James—[Douglas, Pierce, Taney and Buchanan.]—for instance—and when we see these timbers joined together, and see they exactly make the frame of a house or a mill, all the tenons and mortices exactly fitting, and all the lengths and proportions of the different pieces exactly adapted to their respective places, and not a piece too many or too few—not omitting even the scaffolding, or, if a single piece be lacking, we see the place in the frame exactly fitted and prepared yet to bring such piece in—in such a case, we find it impossible not to believe that Stephen and Franklin and Roger and James all understood one another from the beginning, and all worked upon a common plan or draft drawn up before the first blow was struck."

He drew attention also to the fact that by the Nebraska Bill the people of a State, as well as a Territory, were to be left "perfectly free," "subject only to the Constitution," and that the object of lugging a "State" into this merely Territorial law was to enable the United States Supreme Court in some subsequent decision to declare, when the public mind had been sufficiently imbued with Judge Douglas's notion of not caring "whether Slavery be voted up or voted down," that "the Constitution of the United States does not permit a State to exclude Slavery from its limits"—which would make Slavery "alike lawful in all the States." That, he declared to be Judge Douglas's present mission:—"His avowed mission is impressing the 'public heart' to care nothing about it." Hence Mr. Lincoln urged Republicans to stand by their cause, which must be placed in the hands of its friends, "Whose hands are free, whose hearts are in the work—who do care for the result;" for he held that "a living dog is better than a dead lion."

On the evening of July 9, 1858, at Chicago, Mr. Douglas (Mr. Lincoln being present) spoke to an enthusiastic assemblage, which he fitly described as a "vast sea of human faces," and, after stating that he regarded "the Lecompton battle as having been fought and the victory won, because the arrogant demand for the admission of Kansas under the Lecompton Constitution unconditionally, whether her people wanted it or not, has been abandoned, and the principle which recognizes the right of the people to decide for themselves has been submitted in its place," he proceeded to vindicate his position throughout; declared that he opposed "the Lecompton monstrosity solely on the ground that it was a violation of the fundamental principles of free government; on the ground that it was not the act and deed of the people of Kansas; that it did not embody their will; that they were averse to it;" and hence he "denied the right of Congress to force it upon them, either as a Free State or a Slave State."

Said he: "I deny the right of Congress to force a Slaveholding State upon an unwilling people. I deny their right to force a Free State upon an unwilling people. I deny their right to force a good thing upon a people who are unwilling to receive it. The great principle is the right of every community to judge and decide for itself, whether a thing is right or wrong, whether it would be good or evil for them to adopt it; and the right of free action, the right of free thought, the right of free judgment upon the question is dearer to every true American than any other under a free Government. * *

* It is no answer to this argument to say that Slavery is an evil, and hence should not be tolerated. You must allow the people to decide for themselves whether it is good or evil." He then adverted to the arraignment of himself by Mr. Lincoln, and took direct issue with that gentleman on his proposition that, as to Freedom and Slavery, "the Union will become all one thing or all the other;" and maintained on the contrary, that "it is neither desirable nor possible that there should be uniformity in the local institutions and domestic regulations of the different States of this Union."

Upon the further proposition of Mr. Lincoln, which Mr. Douglas described as "a crusade against the Supreme Court of the United States on account of the Dred Scott decision," and as "an appeal from the decision" of that Court "upon this high Constitutional question to a Republican caucus sitting in the country," he also took "direct and distinct issue with him." To "the reason assigned by Mr. Lincoln for resisting the decision of the Supreme Court in the Dred Scott case * * * because it deprives the Negro of the privileges, immunities and rights of citizenship which pertain, according to that decision, only to the White man," Mr. Douglas also took exception thus: "I am free to say to you that in my opinion this Government of ours is founded on the White basis. It was made by the White man for the benefit of the White man, to be administered by White men, in such manner as they should determine. It is also true that a Negro, an Indian, or any other man of inferior race to a White man, should be permitted to enjoy, and humanity requires that he should have, all the rights, privileges, and immunities which he is capable of exercising consistent with the safety of society. * * * But you may ask me what are these rights and these privileges? My answer is, that each State must decide for itself the nature and extent of these rights. * * * Without indorsing the wisdom of that decision, I assert that Virginia has the same power by virtue of her sovereignty to protect Slavery within her limits, as Illinois has to banish it forever from our own borders. I assert the right of each State to decide for itself on all these questions, and I do not subscribe to the doctrine of my friend, Mr. Lincoln, that uniformity is either desirable or possible. I do not acknowledge that the States must all be Free or must all be Slave. I do not acknowledge that the Negro must have civil and political rights everywhere or nowhere. * * * I do not acknowledge any of these doctrines of uniformity in the local and domestic regulations in the different States. * * * Mr. Lincoln goes for a warfare upon the Supreme Court of the United States because of their judicial decision in the Dred Scott case. I yield

obedience to the decisions in that Court—to the final determination of the highest judicial tribunal known to our Constitution. He objects to the Dred Scott decision because it does not put the Negro in the possession of the rights of citizenship on an equality with the White man. I am opposed to Negro equality. * * * I would extend to the Negro, and the Indian, and to all dependent races every right, every privilege, and every immunity consistent with the safety and welfare of the White races; but equality they never should have, either political or social, or in any other respect whatever. * * * My friends, you see that the issues are distinctly drawn."

On the following evening (July 10th) at Chicago, Mr. Lincoln addressed another enthusiastic assemblage, in reply to Mr. Douglas; and, after protesting against a charge that had been made the previous night by the latter, of an "unnatural and unholy" alliance between Administration Democrats and Republicans to defeat him, as being beyond his own knowledge and belief, proceeded: "Popular Sovereignty! Everlasting Popular Sovereignty! Let us for a moment inquire into this vast matter of Popular Sovereignty. What is Popular Sovereignty? We recollect at an early period in the history of this struggle there was another name for the same thing—Squatter Sovereignty. It was not exactly Popular Sovereignty, but Squatter Sovereignty. What do those terms mean? What do those terms mean when used now? And vast credit is taken by our friend, the Judge, in regard to his support of it, when he declares the last years of his life have been, and all the future years of his life shall be, devoted to this matter of Popular Sovereignty. What is it? Why it is the Sovereignty of the People! What was Squatter Sovereignty? I suppose if it had any significance at all, it was the right of the people to govern themselves, to be sovereign in their own affairs while they were squatted down in a country not their own—while they had squatted on a territory that did not belong to them in the sense that a State belongs to the people who inhabit it—when it belonged to the Nation—such right to govern themselves was called 'Squatter Sovereignty.'

"Now I wish you to mark. What has become of that Squatter Sovereignty? What has become of it? Can you get anybody to tell you now that the people of a Territory have any authority to govern themselves, in regard to this mooted question of Slavery, before they form a State Constitution? No such thing at all, although there is a general running fire and although there has been a hurrah made in every speech on that side, assuming that that policy

had given the people of a Territory the right to govern themselves upon this question; yet the point is dodged. To-day it has been decided—no more than a year ago it was decided by the Supreme Court of the United States, and is insisted upon to-day, that the people of a Territory have no right to exclude Slavery from a Territory, that if any one man chooses to take Slaves into a Territory, all the rest of the people have no right to keep them out. This being so, and this decision being made one of the points that the Judge (Douglas) approved, * * * he says he is in favor of it, and sticks to it, and expects to win his battle on that decision, which says there is no such thing as Squatter Sovereignty; but that any man may take Slaves into a Territory and all the other men in the Territory may be opposed to it, and yet by reason of the Constitution they cannot prohibit it; when that is so, how much is left of this vast matter of Squatter Sovereignty, I should like to know? Again, when we get to the question of the right of the people to form a State Constitution as they please, to form it with Slavery or without Slavery—if that is anything new, I confess I don't know it * * *.

"We do not remember that, in that old Declaration of Independence, it is said that 'We hold these truths to be self-evident, that all men are created equal; that they are endowed by their Creator with certain inalienable rights; that among these are life, liberty, and the pursuit of happiness; that to secure these rights, governments are instituted among men, deriving their just powers from the consent of the governed.' There, is the origin of Popular Sovereignty. Who, then, shall come in at this day and claim that he invented it? The Lecompton Constitution connects itself with this question, for it is in this matter of the Lecompton Constitution that our friend, Judge Douglas, claims such vast credit. I agree that in opposing the Lecompton Constitution, so far as I can perceive, he was right. * * * All the Republicans in the Nation opposed it, and they would have opposed it just as much without Judge Douglas's aid as with it. They had all taken ground against it long before he did. Why, the reason that he urges against that Constitution, I urged against him a year before. I have the printed speech in my hand now. The argument that he makes, why that Constitution should not be adopted, that the people were not fairly represented nor allowed to vote, I pointed out in a speech a year ago which I hold in my hand now, that no fair chance was to be given to the people. * * * The Lecompton Constitution, as the Judge tells us, was defeated. The defeat of it was a good thing or it was not. He thinks the defeat of it was a good thing, and so do I, and we agree in that. Who defeated it? [A

voice—'Judge Douglas.'] Yes, he furnished himself, and if you suppose he controlled the other Democrats that went with him, he furnished three votes, while the Republicans furnished twenty. That is what he did to defeat it. In the House of Representatives he and his friends furnished some twenty votes, and the Republicans furnished ninety odd. Now, who was it that did the work? * * * Ground was taken against it by the Republicans long before Douglas did it. The proportion of opposition to that measure is about five to one."

Mr. Lincoln then proceeded to take up the issues which Mr. Douglas had joined with him the previous evening. He denied that he had said, or that it could be fairly inferred from what he had said, in his Springfield speech, that he was in favor of making War by the North upon the South for the extinction of Slavery, "or, in favor of inviting the South to a War upon the North, for the purpose of nationalizing Slavery." Said he: "I did not even say that I desired that Slavery should be put in course of ultimate extinction. I do say so now, however; so there need be no longer any difficulty about that. * * * I am tolerably well acquainted with the history of the Country and I know that it has endured eighty-two years half Slave and half Free. I believe—and that is what I meant to allude to there—I believe it has endured, because during all that time, until the introduction of the Nebraska Bill, the public mind did rest all the, time in the belief that Slavery was in course of ultimate extinction. That was what gave us the rest that we had through that period of eighty-two years; at least, so I believe.

"I have always hated Slavery, I think, as much as any Abolitionist—I have been an Old Line Whig—I have always hated it, but I have always been quiet about it until this new era of the introduction of the Nebraska Bill began. I always believed that everybody was against it, and that it was in course of ultimate extinction. * * * The great mass of the Nation have rested in the belief that Slavery was in course of ultimate extinction. They had reason so to believe. The adoption of the Constitution and its attendant history led the People to believe so, and that such was the belief of the framers of the Constitution itself. Why did those old men about the time of the adoption of the Constitution decree that Slavery should not go into the new territory, where it had not already gone? Why declare that within twenty years the African Slave Trade, by which Slaves are supplied, might be cut off by Congress? Why were all these acts? I might enumerate more of these

acts—but enough. What were they but a clear indication that the framers of the Constitution intended and expected the ultimate extinction of that institution?

"And now, when I say, as I said in my speech that Judge Douglas has quoted from, when I say that I think the opponents of Slavery will resist the further spread of it, and place it where the public mind shall rest with the belief that it is in course of ultimate extinction, I only mean to say, that they will place it where the founders of this Government originally placed it. I have said a hundred times, and I have now no inclination to take it back, that I believe there is no right, and ought to be no inclination in the people of the Free States, to enter into the Slave States, and interfere with the question of Slavery at all. I have said that always; Judge Douglas has heard me say it—if not quite a hundred times, at least as good as a hundred times; and when it is said that I am in favor of interfering with Slavery where it exists, I know that it is unwarranted by anything I have ever intended, and as I believe, by anything I have ever said. If, by any means, I have ever used language which could fairly be so construed (as, however, I believe I never have) I now correct it. So much, then, for the inference that Judge Douglas draws, that I am in favor of setting the Sections at War with one another.

"Now in relation to his inference that I am in favor of a general consolidation of all the local institutions of the various States * * * I have said, very many times in Judge Douglas's hearing, that no man believed more than I in the principle of self-government from beginning to end. I have denied that his use of that term applies properly. But for the thing itself, I deny that any man has ever gone ahead of me in his devotion to the principle, whatever he may have done in efficiency in advocating it. I think that I have said it in your hearing—that I believe each individual is naturally entitled to do as he pleases with himself and the fruit of his labor, so far as it in no wise interferes with any other man's rights—that each community, as a State, has a right to do exactly as it pleases with all the concerns within that State that interfere with the rights of no other State, and that the General Government, upon principle, has no right to interfere with anything other than that general class of things that does concern the whole. I have said that at all times.

"I have said, as illustrations, that I do not believe in the right of Illinois to interfere with the cranberry laws of Indiana, the oyster laws of Virginia, or

the liquor laws of Maine. I have said these things over and over again, and I repeat them here as my sentiments. * * * What can authorize him to draw any such inference? I suppose there might be one thing that at least enabled him to draw such an inference that would not be true with me or many others, that is, because he looks upon all this matter of Slavery as an exceedingly little thing—this matter of keeping one-sixth of the population of the whole Nation in a state of oppression and tyranny unequalled in the World.

"He looks upon it as being an exceedingly little thing only equal to the cranberry laws of Indiana—as something having no moral question in it—as something on a par with the question of whether a man shall pasture his land with cattle, or plant it with tobacco—so little and so small a thing, that he concludes, if I could desire that anything should be done to bring about the ultimate extinction of that little thing, I must be in favor of bringing about an amalgamation of all the other little things in the Union.

"Now it so happens—and there, I presume, is the foundation of this mistake—that the Judge thinks thus; and it so happens that there is a vast portion of the American People that do not look upon that matter as being this very little thing. They look upon it as a vast moral evil; they can prove it as such by the writings of those who gave us the blessings of Liberty which we enjoy, and that they so looked upon it, and not as an evil merely confining itself to the States where it is situated; while we agree that, by the Constitution we assented to, in the States where it exists we have no right to interfere with it, because it is in the Constitution; and we are by both duty and inclination to stick by that Constitution in all its letter and spirit, from beginning to end. * * * The Judge can have no issue with me on a question of establishing uniformity in the domestic regulations of the States. * * *

"Another of the issues he says that is to be made with me, is upon his devotion to the Dred Scott decision, and my opposition to it. I have expressed heretofore, and I now repeat, my opposition to the Dred Scott decision; but I should be allowed to state the nature of that opposition. * * * What is fairly implied by the term Judge Douglas has used, 'resistance to the decision?' I do not resist it. If I wanted to take Dred Scott from his master, I would be interfering with property and that terrible difficulty that Judge Douglas speaks of, of interfering with property, would arise. But I am doing no such thing as that, but all that I am doing is refusing to obey it, as a

political rule. If I were in Congress, and a vote should come up on a question whether Slavery should be prohibited in a new Territory, in spite of the Dred Scott decision, I would vote that it should. That is what I would do.

"Judge Douglas said last night, that before the decision he might advance his opinion, and it might be contrary to the decision when it was made; but after it was made, he would abide by it until it was reversed. Just so! We let this property abide by the decision, but we will try to reverse that decision. We will try to put it where Judge Douglas would not object, for he says he will obey it until it is reversed. Somebody has to reverse that decision, since it is made, and we mean to reverse it, and we mean to do it peaceably.

"What are the uses of decisions of Courts? They have two uses. As rules of property they have two uses. First, they decide upon the question before the Court. They decide in this case that Dred Scott is a Slave. Nobody resists that. Not only that, but they say to everybody else, that persons standing just as Dred Scott stands, are as he is. That is, they say that when a question comes up upon another person, it will be so decided again, unless the Court decides in another way—unless the Court overrules its decision.—Well, we mean to do what we can to have the Court decide the other way. That is one thing we mean to try to do.

"The sacredness that Judge Douglas throws around this decision is a degree of sacredness that has never before been thrown around any other decision. I have never heard of such a thing. Why, decisions apparently contrary to that decision, or that good lawyers thought were contrary to that decision, have been made by that very Court before. It is the first of its kind; it is an astonisher in legal history. It is a new wonder of the world. It is based upon falsehood in the main as to the facts—allegations of facts upon which it stands are not facts at all in many instances; and no decision made on any question—the first instance of a decision made under so many unfavorable circumstances—thus placed, has ever been held by the profession as law, and it has always needed confirmation before the lawyers regarded it as settled law. But Judge Douglas will have it that all hands must take this extraordinary decision, made under these extraordinary circumstances, and give their vote in Congress in accordance with it, yield to it and obey it in every possible sense.

"Circumstances alter cases. Do not gentlemen remember the case of that same Supreme Court, some twenty-five or thirty years ago, deciding that a National Bank was Constitutional? * * * The Bank charter ran out, and a recharter was granted by Congress. That re-charter was laid before General Jackson. It was urged upon him, when he denied the Constitutionality of the Bank, that the Supreme Court had decided that it was Constitutional; and General Jackson then said that the Supreme Court had no right to lay down a rule to govern a co-ordinate branch of the Government, the members of which had sworn to support the Constitution—that each member had sworn to support that Constitution as he understood it. I will venture here to say, that I have heard Judge Douglas say that he approved of General Jackson for that act. What has now become of all his tirade about 'resistance to the Supreme Court?'"

After adverting to Judge Douglas's warfare on "the leaders" of the Republican party, and his desire to have "it understood that the mass of the Republican party are really his friends," Mr. Lincoln said: "If you indorse him, you tell him you do not care whether Slavery be voted up or down, and he will close, or try to close, your mouths with his declaration repeated by the day, the week, the month, and the year. Is that what you mean? * * * Now I could ask the Republican party, after all the hard names that Judge Douglas has called them by, all his repeated charges of their inclination to marry with and hug negroes—all his declarations of Black Republicanism—by the way, we are improving, the black has got rubbed off—but with all that, if he be indorsed by Republican votes, where do you stand? Plainly, you stand ready saddled, bridled, and harnessed, and waiting to be driven over to the Slavery-extension camp of the Nation—just ready to be driven over, tied together in a lot—to be driven over, every man with a rope around his neck, that halter being held by Judge Douglas. That is the question. If Republican men have been in earnest in what they have done, I think that they has better not do it. * * *

"We were often—more than once at least—in the course of Judge Douglas's speech last night, reminded that this Government was made for White men—that he believed it was made for White men. Well, that is putting it in a shape in which no one wants to deny it; but the Judge then goes into his passion for drawing inferences that are not warranted. I protest, now and forever, against that counterfeit logic which presumes that because

I do not want a Negro woman for a Slave I do necessarily want her for a wife. My understanding is that I need not have her for either; but, as God has made us separate, we can leave one another alone, and do one another much good thereby. There are White men enough to marry all the White women, and enough Black men to marry all the Black women, and in God's name let them be so married. The Judge regales us with the terrible enormities that take place by the mixture of races; that the inferior race bears the superior down. Why, Judge, if we do not let them get together in the Territories, they won't mix there.

" * * * Those arguments that are made, that the inferior race are to be treated with as much allowance as they are capable of enjoying; that as much is to be done for them as their condition will allow—what are these arguments? They are the arguments that Kings have made for enslaving the People in all ages of the World. You will find that all the arguments in favor of king-craft were of this class; they always bestrode the necks of the People, not that they wanted to do it, but because the People were better off for being ridden! That is their argument, and this argument of the Judge is the same old Serpent that says: you work, and I eat; you toil, and I will enjoy the fruits of it.

"Turn it whatever way you will—whether it come from the mouth of a King, an excuse for enslaving the People of his Country, or from the mouth of men of one race as a reason for enslaving the men of another race, it is all the same old Serpent; and I hold, if that course of argumentation that is made for the purpose of convincing the public mind that we should not care about this, should be granted, it does not stop with the Negro.

"I should like to know, taking this old Declaration of Independence, which declares that all men are equal upon principle, and making exceptions to it, where will it stop? If one man says it does not mean a Negro, why not say it does not mean some other man? If that Declaration is not the truth, let us get the Statute Book, in which we find it, and tear it out! Who is so bold as to do it? If it is not true, let us tear it out!" [Cries of "No, no."] "Let us stick to it then; let us stand firmly by it, then. * * *

" * * * The Saviour, I suppose, did not expect that any human creature could be perfect as the Father in Heaven; but He said, 'As your Father in Heaven is perfect, be ye also perfect.' He set that up as a standard, and he

who did most toward reaching that standard, attained the highest degree of moral perfection. So I say, in relation to the principle that all men are created equal—let it be as nearly reached as we can. If we cannot give Freedom to every creature, let us do nothing that will impose Slavery upon any other creature. Let us then turn this Government back into the channel in which the framers of the Constitution originally placed it. Let us stand firmly by each other. * * * Let us discard all this quibbling * * * and unite as one People throughout this Land, until we shall once more stand up declaring that all men are created equal."

At Bloomington, July 16th (Mr. Lincoln being present), Judge Douglas made another great speech of vindication and attack. After sketching the history of the Kansas-Nebraska struggle, from the introduction by himself of the Nebraska Bill in the United States Senate, in 1854, down to the passage of the "English" Bill—which prescribed substantially that if the people of Kansas would come in as a Slave-holding State, they should be admitted with but 35,000 inhabitants; but if they would come in as a Free State, they must have 93,420 inhabitants; which unfair restriction was opposed by Judge Douglas, but to which after it became law he "bowed in deference," because whatever decision the people of Kansas might make on the coming third of August would be "final and conclusive of the whole question"—he proceeded to compliment the Republicans in Congress, for supporting the Crittenden-Montgomery Bill—for coming "to the Douglas platform, abandoning their own, believing (in the language of the New York Tribune), that under the peculiar circumstances they would in that mode best subserve the interests of the Country;" and then again attacked Mr. Lincoln for his "unholy and unnatural alliance" with the Lecompton-Democrats to defeat him, because of which, said he: "You will find he does not say a word against the Lecompton Constitution or its supporters. He is as silent as the grave upon that subject. Behold Mr. Lincoln courting Lecompton votes, in order that he may go to the Senate as the representative of Republican principles! You know that the alliance exists. I think you will find that it will ooze out before the contest is over." Then with many handsome compliments to the personal character of Mr. Lincoln, and declaring that the question for decision was "whether his principles are more in accordance with the genius of our free institutions, the peace and harmony of the Republic" than those advocated by himself, Judge Douglas proceeded to discuss what he described as "the two points at issue between Mr. Lincoln and myself."

Said he: "Although the Republic has existed from 1789 to this day, divided into Free States and Slave States, yet we are told that in the future it cannot endure unless they shall become all Free or all Slave. * * * He wishes to go to the Senate of the United States in order to carry out that line of public policy which will compel all the States in the South to become Free. How is he going to do it? Has Congress any power over the subject of Slavery in Kentucky or Virginia or any other State of this Union? How, then, is Mr. Lincoln going to carry out that principle which he says is essential to the existence of this Union, to wit: That Slavery must be abolished in all the States of the Union or must be established in them all? You convince the South that they must either establish Slavery in Illinois and in every other Free State, or submit to its abolition in every Southern State and you invite them to make a warfare upon the Northern States in order to establish Slavery for the sake of perpetuating it at home. Thus, Mr. Lincoln invites, by his proposition, a War of Sections, a War between Illinois and Kentucky, a War between the Free States and the Slave States, a War between the North and South, for the purpose of either exterminating Slavery in every Southern State or planting it in every Northern State. He tells you that the safety of the Republic, that the existence of this Union, depends upon that warfare being carried on until one Section or the other shall be entirely subdued. The States must all be Free or Slave, for a house divided against itself cannot stand. That is Mr. Lincoln's argument upon that question. My friends, is it possible to preserve Peace between the North and the South if such a doctrine shall prevail in either Section of the Union?

"Will you ever submit to a warfare waged by the Southern States to establish Slavery in Illinois? What man in Illinois would not lose the last drop of his heart's blood before he would submit to the institution of Slavery being forced upon us by the other States against our will? And if that be true of us, what Southern man would not shed the last drop of his heart's blood to prevent Illinois, or any other Northern State, from interfering to abolish Slavery in his State? Each of these States is sovereign under the Constitution; and if we wish to preserve our liberties, the reserved rights and sovereignty of each and every State must be maintained. * * * The difference between Mr. Lincoln and myself upon this point is, that he goes for a combination of the Northern States, or the organization of a sectional political party in the Free States, to make War on the domestic institutions of

the Southern States, and to prosecute that War until they all shall be subdued, and made to conform to such rules as the North shall dictate to them.

"I am aware that Mr. Lincoln, on Saturday night last, made a speech at Chicago for the purpose, as he said, of explaining his position on this question. * * * His answer to this point which I have been arguing, is, that he never did mean, and that I ought to know that he never intended to convey the idea, that he wished the people of the Free States to enter into the Southern States and interfere with Slavery. Well, I never did suppose that he ever dreamed of entering into Kentucky, to make War upon her institutions, nor will any Abolitionist ever enter into Kentucky to wage such War. Their mode of making War is not to enter into those States where Slavery exists, and there interfere, and render themselves responsible for the consequences. Oh, no! They stand on this side of the Ohio River and shoot across. They stand in Bloomington and shake their fists at the people of Lexington; they threaten South Carolina from Chicago. And they call that bravery! But they are very particular, as Mr. Lincoln says, not to enter into those States for the purpose of interfering with the institution of Slavery there. I am not only opposed to entering into the Slave States, for the purpose of interfering with their institutions, but I am opposed to a sectional agitation to control the institutions of other States. I am opposed to organizing a sectional party, which appeals to Northern pride, and Northern passion and prejudice, against Southern institutions, thus stirring up ill feeling and hot blood between brethren of the same Republic. I am opposed to that whole system of sectional agitation, which can produce nothing but strife, but discord, but hostility, and finally disunion. * * *

"I ask Mr. Lincoln how it is that he purposes ultimately to bring about this uniformity in each and all the States of the Union? There is but one possible mode which I can see, and perhaps Mr. Lincoln intends to pursue it; that is, to introduce a proposition into the Senate to change the Constitution of the United States in order that all the State Legislatures may be abolished, State Sovereignty blotted out, and the power conferred upon Congress to make local laws and establish the domestic institutions and police regulations uniformly throughout the United States.

"Are you prepared for such a change in the institutions of your country? Whenever you shall have blotted out the State Sovereignties, abolished the State Legislatures, and consolidated all the power in the Federal

Government, you will have established a Consolidated Empire as destructive to the Liberties of the People and the Rights of the Citizen as that of Austria, or Russia, or any other despotism that rests upon the neck of the People. * *

* There is but one possible way in which Slavery can be abolished, and that is by leaving a State, according to the principle of the Kansas-Nebraska Bill, perfectly free to form and regulate its institutions in its own way. That was the principle upon which this Republic was founded, and it is under the operation of that principle that we have been able to preserve the Union thus far under its operation. Slavery disappeared from New Hampshire, from Rhode Island, from Connecticut, from New York, from New Jersey, from Pennsylvania, from six of the twelve original Slave-holding States; and this gradual system of emancipation went on quietly, peacefully, and steadily, so long as we in the Free States minded our own business, and left our neighbors alone.

"But the moment the Abolition Societies were organized throughout the North, preaching a violent crusade against Slavery in the Southern States, this combination necessarily caused a counter-combination in the South, and a sectional line was drawn which was a barrier to any further emancipation. Bear in mind that emancipation has not taken place in any one State since the Free Soil Party was organized as a political party in this country. Emancipation went on gradually, in State after State, so long as the Free States were content with managing their own affairs and leaving the South perfectly free to do as they pleased; but the moment the North said we are powerful enough to control you of the South, the moment the North proclaimed itself the determined master of the South, that moment the South combined to resist the attack, and thus sectional parties were formed and gradual emancipation ceased in all the Slave-holding States.

"And yet Mr. Lincoln, in view of these historical facts, proposes to keep up this sectional agitation, band all the Northern States together in one political Party, elect a President by Northern votes alone, and then, of course, make a Cabinet composed of Northern men, and administer the Government by Northern men only, denying all the Southern States of this Union any participation in the administration of affairs whatsoever. I submit to you, my fellow-citizens, whether such a line of policy is consistent with the peace and harmony of the Country? Can the Union endure under such a system of policy? He has taken his position in favor of sectional agitation and sectional

warfare. I have taken mine in favor of securing peace, harmony, and good-will among all the States, by permitting each to mind its own business, and discountenancing any attempt at interference on the part of one State with the domestic concerns of the others. * * *

"Mr. Lincoln tells you that he is opposed to the decision of the Supreme Court in the Dred Scott case. Well, suppose he is; what is he going to do about it? * * * Why, he says he is going to appeal to Congress. Let us see how he will appeal to Congress. He tells us that on the 8th of March, 1820, Congress passed a law called the Missouri Compromise, prohibiting Slavery forever in all the territory west of the Mississippi and north of the Missouri line of thirty-six degrees and thirty minutes; that Dred Scott, a slave in Missouri, was taken by his master to Fort Snelling, in the present State of Minnesota, situated on the west branch of the Mississippi River, and consequently in the Territory where Slavery was prohibited by the Act of 1820; and that when Dred Scott appealed for his Freedom in consequence of having been taken into that Territory, the Supreme Court of the United States decided that Dred Scott did not become Free by being taken into that Territory, but that having been carried back to Missouri, was yet a Slave.

"Mr. Lincoln is going to appeal from that decision and reverse it. He does not intend to reverse it as to Dred Scott. Oh, no! But he will reverse it so that it shall not stand as a rule in the future. How will he do it? He says that if he is elected to the Senate he will introduce and pass a law just like the Missouri Compromise, prohibiting Slavery again in all the Territories. Suppose he does re-enact the same law which the Court has pronounced unconstitutional, will that make it Constitutional? * * * Will it be any more valid? Will he be able to convince the Court that the second Act is valid, when the first is invalid and void? What good does it do to pass a second Act? Why, it will have the effect to arraign the Supreme Court before the People, and to bring them into all the political discussions of the Country. Will that do any good? * * *

"The functions of Congress are to enact the Statutes, the province of the Court is to pronounce upon their validity, and the duty of the Executive is to carry the decision into effect when rendered by the Court. And yet, notwithstanding the Constitution makes the decision of the Court final in regard to the validity of an Act of Congress, Mr. Lincoln is going to reverse that decision by passing another Act of Congress. When he has become

convinced of the Folly of the proposition, perhaps he will resort to the same subterfuge that I have found others of his Party resort to, which is to agitate and agitate until he can change the Supreme Court and put other men in the places of the present incumbents."

After ridiculing this proposition at some length, he proceeded:

"Mr. Lincoln is alarmed for fear that, under the Dred Scott decision, Slavery will go into all the Territories of the United States. All I have to say is that, with or without this decision, Slavery will go just where the People want it, and not an inch further. * * * Hence, if the People of a Territory want Slavery, they will encourage it by passing affirmatory laws, and the necessary police regulations, patrol laws and Slave Code; if they do not want it, they will withhold that legislation, and, by withholding it, Slavery is as dead as if it was prohibited by a Constitutional prohibition, especially if, in addition, their legislation is unfriendly, as it would be if they were opposed to it."

Then, taking up what he said was "Mr. Lincoln's main objection to the Dred Scott decision," to wit: "that that decision deprives the Negro of the benefits of that clause of the Constitution of the United States which entitles the citizens of each State to all the privileges and immunities of citizens of the several States," and admitting that such would be its effect, Mr. Douglas contended at some length that this Government was "founded on the White basis" for the benefit of the Whites and their posterity. He did "not believe that it was the design or intention of the signers of the Declaration of Independence or the frames of the Constitution to include Negroes, Indians, or other inferior races, with White men as citizens;" nor that the former "had any reference to Negroes, when they used the expression that all men were created equal," nor to "any other inferior race." He held that, "They were speaking only of the White race, and never dreamed that their language would be construed to apply to the Negro;" and after ridiculing the contrary view, insisted that, "The history of the Country shows that neither the signers of the Declaration, nor the Framers of the Constitution, ever supposed it possible that their language would be used in an attempt to make this Nation a mixed Nation of Indians, Negroes, Whites, and Mongrels."

The "Fathers proceeded on the White basis, making the White people the governing race, but conceding to the Indian and Negro, and all inferior races,

all the rights and all the privileges they could enjoy consistent with the safety of the society in which they lived. That," said he, "is my opinion now. I told you that humanity, philanthropy, justice, and sound policy required that we should give the Negro every right, every privilege, every immunity consistent with the safety and welfare of the State. The question, then, naturally arises, what are those rights and privileges, and what is the nature and extent of them? My answer is, that that is a question which each State and each Territory must decide for itself. * * * I am content with that position. My friend Lincoln is not. * * * He thinks that the Almighty made the Negro his equal and his brother. For my part I do not consider the Negro any kin to me, nor to any other White man; but I would still carry my humanity and my philanthropy to the extent of giving him every privilege and every immunity that he could enjoy, consistent with our own good."

After again referring to the principles connected with non-interference in the domestic institutions of the States and Territories, and to the devotion of all his energies to them "since 1850, when," said he, "I acted side by side with the immortal Clay and the god-like Webster, in that memorable struggle in which Whigs and Democrats united upon a common platform of patriotism and the Constitution, throwing aside partisan feelings in order to restore peace and harmony to a distracted Country"—he alluded to the death-bed of Clay, and the pledges made by himself to both Clay and Webster to devote his own life to the vindication of the principles of that Compromise of 1850 as a means of preserving the Union; and concluded with this appeal: "This Union can only be preserved by maintaining the fraternal feeling between the North and the South, the East and the West. If that good feeling can be preserved, the Union will be as perpetual as the fame of its great founders. It can be maintained by preserving the sovereignty of the States, the right of each State and each Territory to settle its domestic concerns for itself, and the duty of each to refrain from interfering with the other in any of its local or domestic institutions. Let that be done, and the Union will be perpetual; let that be done, and this Republic, which began with thirteen States and which now numbers thirty-two, which when it began, only extended from the Atlantic to the Mississippi, but now reaches to the Pacific, may yet expand, North and South, until it covers the whole Continent, and becomes one vast ocean-bound Confederacy. Then, my friends, the path of duty, of honor, of patriotism, is plain. There are a few simple principles to be preserved. Bear in mind the dividing line between

State rights and Federal authority; let us maintain the great principles of Popular Sovereignty, of State rights and of the Federal Union as the Constitution has made it, and this Republic will endure forever."

On the next evening, July 17th, at Springfield, both Douglas and Lincoln addressed separate meetings.

After covering much the same ground with regard to the history of the Kansas-Nebraska struggle and his own attitude upon it, as he did in his previous speech, Mr. Douglas declined to comment upon Mr. Lincoln's intimation of a Conspiracy between Douglas, Pierce, Buchanan, and Taney for the passage of the Nebraska Bill, the rendition of the Dred Scott decision, and the extension of Slavery, but proceeded to dilate on the "uniformity" issue between himself and Mr. Lincoln, in much the same strain as before, tersely summing up with the statement that "there is a distinct issue of principles—principles irreconcilable—between Mr. Lincoln and myself. He goes for consolidation and uniformity in our Government. I go for maintaining the Confederation of the Sovereign States under the Constitution, as our fathers made it, leaving each State at liberty to manage its own affairs and own internal institutions."

He then ridiculed, at considerable length, Mr. Lincoln's proposed methods of securing a reversal by the United States Supreme Court of the Dred Scott decision—especially that of an "appeal to the People to elect a President who will appoint judges who will reverse the Dred Scott decision," which he characterized as "a proposition to make that Court the corrupt, unscrupulous tool of a political party," and asked, "when we refuse to abide by Judicial decisions, what protection is there left for life and property? To whom shall you appeal? To mob law, to partisan caucuses, to town meetings, to revolution? Where is the remedy when you refuse obedience to the constituted authorities?" In other respects the speech was largely a repetition of his Bloomington speech.

Mr. Lincoln in his speech, the same night, at Springfield, opened by contrasting the disadvantages under which, by reason of an unfair apportionment of State Legislative representation and otherwise, the Republicans of Illinois labored in this fight. Among other disadvantages—whereby he said the Republicans were forced "to fight this battle upon principle and upon principle alone"—were those which he said arose "out of

the relative positions of the two persons who stand before the State as candidates for the Senate."

Said he: "Senator Douglas is of world-wide renown. All the anxious politicians of his Party, or who have been of his Party for years past, have been looking upon him as certainly, at no distant day, to be the President of the United States. They have seen in his round, jolly, fruitful face, Post-offices, Land-offices, Marshalships, and Cabinet appointments, Chargeships and Foreign Missions, bursting and sprouting out in wonderful exuberance, ready to be laid hold of by their greedy hands. And as they have been gazing upon this attractive picture so long, they cannot, in the little distraction that has taken place in the party, bring themselves to give up the charming hope; but with greedier anxiety they rush about him, sustain him, and give him marches, triumphal entries, and receptions, beyond what even in the days of his highest prosperity they could have brought about in his favor. On the contrary, nobody has ever expected me to be President. In my poor, lean, lank face, nobody has ever seen that any cabbages were sprouting out."

Then he described the main points of Senator Douglas's plan of campaign as being not very numerous. "The first," he said, "is Popular Sovereignty. The second and third are attacks upon my speech made on the 16th of June. Out of these three points—drawing within the range of Popular Sovereignty the question of the Lecompton Constitution—he makes his principal assault. Upon these his successive speeches are substantially one and the same." Touching the first point, "Popular Sovereignty"—"the great staple" of Mr. Douglas's campaign—Mr. Lincoln affirmed that it was "the most arrant Quixotism that was ever enacted before a community."

He said that everybody understood that "we have not been in a controversy about the right of a People to govern themselves in the ordinary matters of domestic concern in the States and Territories;" that, "in this controversy, whatever has been said has had reference to the question of Negro Slavery;" and "hence," said he, "when hereafter I speak of Popular Sovereignty, I wish to be understood as applying what I say to the question of Slavery only; not to other minor domestic matters of a Territory or a State."

Having cleared away the cobwebs, Mr. Lincoln proceeded:

"Does Judge Douglas, when he says that several of the past years of his life have been devoted to the question of 'Popular Sovereignty' * * * mean to say that he has been devoting his life to securing the People of the Territories the right to exclude Slavery from the Territories? If he means so to say, he means to deceive; because he and every one knows that the decision of the Supreme Court, which he approves, and makes special ground of attack upon me for disapproving, forbids the People of a Territory to exclude Slavery.

"This covers the whole ground from the settlement of a Territory till it reaches the degree of maturity entitling it to form a State Constitution. * * * This being so, the period of time from the first settlement of a Territory till it reaches the point of forming a State Constitution, is not the thing that the Judge has fought for, or is fighting for; but, on the contrary, he has fought for, and is fighting for, the thing that annihilates and crushes out that same Popular Sovereignty. Well, so much being disposed of, what is left? Why, he is contending for the right of the People, when they come to make a State Constitution, to make it for themselves, and precisely as best suits themselves. I say again, that is Quixotic. I defy contradiction when I declare that the Judge can find no one to oppose him on that proposition. I repeat, there is nobody opposing that proposition on principle. * * * Nobody is opposing, or has opposed, the right of the People when they form a State Constitution, to form it for themselves. Mr. Buchanan and his friends have not done it; they, too, as well as the Republicans and the Anti-Lecompton Democrats, have not done it; but on the contrary, they together have insisted on the right of the People to form a Constitution for themselves. The difference between the Buchanan men, on the one hand, and the Douglas men and the Republicans, on the other, has not been on a question of principle, but on a question of fact * * * whether the Lecompton Constitution had been fairly formed by the People or not. * * * As to the principle, all were agreed.

"Judge Douglas voted with the Republicans upon that matter of fact. He and they, by their voices and votes, denied that it was a fair emanation of the People. The Administration affirmed that it was. * * * This being so, what is Judge Douglas going to spend his life for? Is he going to spend his life in maintaining a principle that no body on earth opposes? Does he expect to stand up in majestic dignity and go through his apotheosis and become a

god, in the maintaining of a principle which neither man nor mouse in all God's creation is opposing?"

After ridiculing the assumption that Judge Douglas was entitled to all the credit for the defeat of the Lecompton Constitution in the House of Representatives—when the defeating vote numbered 120, of which 6 were Americans, 20 Douglas (or Anti-Lecompton) Democrats, and 94 Republicans—and hinting that perhaps he placed "his superior claim to credit, on the ground that he performed a good act which was never expected of him," or "upon the ground of the parable of the lost sheep," of which it had been said, "that there was more rejoicing over the one sheep that was lost and had been found, than over the ninety and nine in the fold—" he added: "The application is made by the Saviour in this parable, thus: 'Verily, I say unto you, there is more rejoicing in Heaven over one sinner that repenteth, than over ninety and nine just persons that need no repentance.' And now if the Judge claims the benefit of this parable, let him repent. Let him not come up here and say: 'I am the only just person; and you are the ninety-nine sinners!' Repentance before forgiveness is a provision of the Christian system, and on that condition alone will the Republicans grant his forgiveness."

After complaining that Judge Douglas misrepresented his attitude as indicated in his 16th of June speech at Springfield, in charging that he invited "a War of Sections;"—that he proposed that "all the local institutions of the different States shall become consolidated and uniform," Mr. Lincoln denied that that speech could fairly bear such construction.

In that speech he (Mr. L.) had simply expressed an expectation that "either the opponents of Slavery will arrest the further spread of it, and place it where the public mind shall rest in the belief that it is in the course of ultimate extinction, or its advocates will push it forward till it shall become alike lawful in all the States, old as well as new, North as well as South." Since then, at Chicago, he had also expressed a "wish to see the spread of Slavery arrested, and to see it placed where the public mind shall rest in the belief that it is in the course of ultimate extinction"—and, said he: "I said that, because I supposed, when the public mind shall rest in that belief, we shall have Peace on the Slavery question. I have believed—and now believe—the public mind did rest on that belief up to the introduction of the Nebraska Bill. Although I have ever been opposed to Slavery, so far I rested

in the hope and belief that it was in the course of ultimate extinction. For that reason, it had been a minor question with me. I might have been mistaken; but I had believed, and now believe, that the whole public mind, that is, the mind of the great majority, had rested in that belief up to the Repeal of the Missouri Compromise. But upon that event, I became convinced that either I had been resting in a delusion, or the institution was being placed on a new basis—a basis for making it Perpetual, National, and Universal. Subsequent events have greatly confirmed me in that belief.

"I believe that Bill to be the beginning of a Conspiracy for that purpose. So believing, I have since then considered that question a paramount one. So believing, I thought the public mind would never rest till the power of Congress to restrict the spread of it shall again be acknowledged and exercised on the one hand, or, on the other, all resistance be entirely crushed out. I have expressed that opinion and I entertain it to-night."

Having given some pieces of evidence in proof of the "tendency," he had discovered, to the Nationalization of Slavery in these States, Mr. Lincoln continued: "And now, as to the Judge's inference, that because I wish to see Slavery placed in the course of ultimate extinction—placed where our fathers originally placed it—I wish to annihilate the State Legislatures—to force cotton to grow upon the tops of the Green Mountains—to freeze ice in Florida—to cut lumber on the broad Illinois prairies—that I am in favor of all these ridiculous and impossible things! It seems to me it is a complete answer to all this, to ask if, when Congress did have the fashion of restricting Slavery from Free Territory; when Courts did have the fashion of deciding that taking a Slave into a Free, Country made him Free—I say it is a sufficient answer to ask, if any of this ridiculous nonsense, about consolidation and uniformity, did actually follow? Who heard of any such thing, because of the Ordinance of '87? because of the Missouri Restriction because of the numerous Court decisions of that character?

"Now, as to the Dred Scott decision; for upon that he makes his last point at me. He boldly takes ground in favor of that decision. This is one-half the onslaught and one-third of the entire plan of the campaign. I am opposed to that decision in a certain sense, but not in the sense which he puts on it. I say that in so far as it decided in favor of Dred Scott's master, and against Dred Scott and his family, I do not propose to disturb or resist the decision. I never have proposed to do any such thing. I think, that in respect for judicial

authority, my humble history would not suffer in comparison with that of Judge Douglas. He would have the citizen conform his vote to that decision; the member of Congress, his; the President, his use of the veto power. He would make it a rule of political action for the People and all the departments of the Government. I would not. By resisting it as a political rule, I disturb no right of property, create no disorder, excite no mobs."

After quoting from a letter of Mr. Jefferson (vol. vii., p. 177, of his Correspondence,) in which he held that "to consider the judges as the ultimate arbiters of all Constitutional questions," is "a very dangerous doctrine indeed; and one which would place us under the despotism of an Oligarchy," Mr. Lincoln continued: "Let us go a little further. You remember we once had a National Bank. Some one owed the Bank a debt; he was sued, and sought to avoid payment on the ground that the Bank was unconstitutional. The case went to the Supreme Court, and therein it was decided that the Bank was Constitutional. The whole Democratic party revolted against that decision. General Jackson himself asserted that he, as President, would not be bound to hold a National Bank to be Constitutional, even though the Court had decided it to be so. He fell in, precisely, with the view of Mr. Jefferson, and acted upon it under his official oath, in vetoing a charter for a National Bank.

"The declaration that Congress does not possess this Constitutional power to charter a Bank, has gone into the Democratic platform, at their National Conventions, and was brought forward and reaffirmed in their last Convention at Cincinnati. They have contended for that declaration, in the very teeth of the Supreme Court, for more than a quarter of a century. In fact, they have reduced the decision to an absolute nullity. That decision, I repeat, is repudiated in the Cincinnati platform; and still, as if to show that effrontery can go no further, Judge Douglas vaunts in the very speeches in which he denounces me for opposing the Dred Scott decision, that he stands on the Cincinnati platform.

"Now, I wish to know what the Judge can charge upon me, with respect to decisions of the Supreme Court, which does not lie in all its length, breadth, and proportions, at his own door? The plain truth is simply this: Judge Douglas is for Supreme Court decisions when he likes, and against them when he does not like them. He is for the Dred Scott decision because it tends to Nationalize Slavery—because it is a part of the original combination

for that object. It so happens, singularly enough, that I never stood opposed to a decision of the Supreme Court till this. On the contrary, I have no recollection that he was ever particularly in favor of one till this. He never was in favor of any, nor (I) opposed to any, till the present one, which helps to Nationalize Slavery. Free men of Sangamon—Free men of Illinois, Free men everywhere—judge ye between him and me, upon this issue!

"He says this Dred Scott case is a very small matter at most—that it has no practical effect; that at best, or rather I suppose at worst, it is but an abstraction. * * * How has the planting of Slavery in new countries always been effected? It has now been decided that Slavery cannot be kept out of our new Territories by any legal means. In what do our new Territories now differ in this respect from the old Colonies when Slavery was first planted within them?

"It was planted, as Mr. Clay once declared, and as history proves true, by individual men in spite of the wishes of the people; the Mother-Government refusing to prohibit it, and withholding from the People of the Colonies the authority to prohibit it for themselves. Mr. Clay says this was one of the great and just causes of complaint against Great Britain by the Colonies, and the best apology we can now make for having the institution amongst us. In that precise condition our Nebraska politicians have at last succeeded in placing our own new Territories; the Government will not prohibit Slavery within them, nor allow the People to prohibit it."

Alluding to that part of Mr. Douglas's speech the previous night touching the death-bed scene of Mr. Clay, with Mr. Douglas's promise to devote the remainder of his life to "Popular Sovereignty"—and to his relations with Mr. Webster—Mr. Lincoln said: "It would be amusing, if it were not disgusting, to see how quick these Compromise breakers administer on the political effects of their dead adversaries. If I should be found dead to-morrow morning, nothing but my insignificance could prevent a speech being made on my authority, before the end of next week. It so happens that in that 'Popular Sovereignty' with which Mr. Clay was identified, the Missouri Compromise was expressly reserved; and it was a little singular if Mr. Clay cast his mantle upon Judge Douglas on purpose to have that Compromise repealed. Again, the Judge did not keep faith with Mr. Clay when he first brought in the Nebraska Bill. He left the Missouri Compromise unrepealed, and in his report accompanying the Bill, he told the World he did it on

purpose. The manes of Mr. Clay must have been in great agony, till thirty days later, when 'Popular Sovereignty' stood forth in all its glory."

Touching Mr. Douglas's allegations of Mr. Lincoln's disposition to make Negroes equal with the Whites, socially and politically, the latter said: "My declarations upon this subject of Negro Slavery may be misrepresented, but cannot be misunderstood. I have said that I do not understand the Declaration (of Independence) to mean that all men were created equal in all respects. They are not equal in color; but I suppose that it does mean to declare that all men are equal in some respects; they are equal in their right to 'Life, Liberty, and the pursuit of Happiness.' Certainly the Negro is not our equal in color—perhaps not in many other respects; still, in the right to put into his mouth the bread that his own hands have earned, he is the equal of every other man, White or Black. In pointing out that more has been given you, you cannot be justified in taking away the little which has been given him. All I ask for the Negro is that if you do not like him, let him alone. If God gave him but little, that little let him enjoy.

"The framers of the Constitution," continued Mr. Lincoln, "found the institution of Slavery amongst their other institutions at the time. They found that by an effort to eradicate it, they might lose much of what they had already gained. They were obliged to bow to the necessity. They gave Congress power to abolish the Slave Trade at the end of twenty years. They also prohibited it in the Territories where it did not exist. They did what they could, and yielded to the necessity for the rest. I also yield to all which follows from that necessity. What I would most desire would be the separation of the White and Black races."

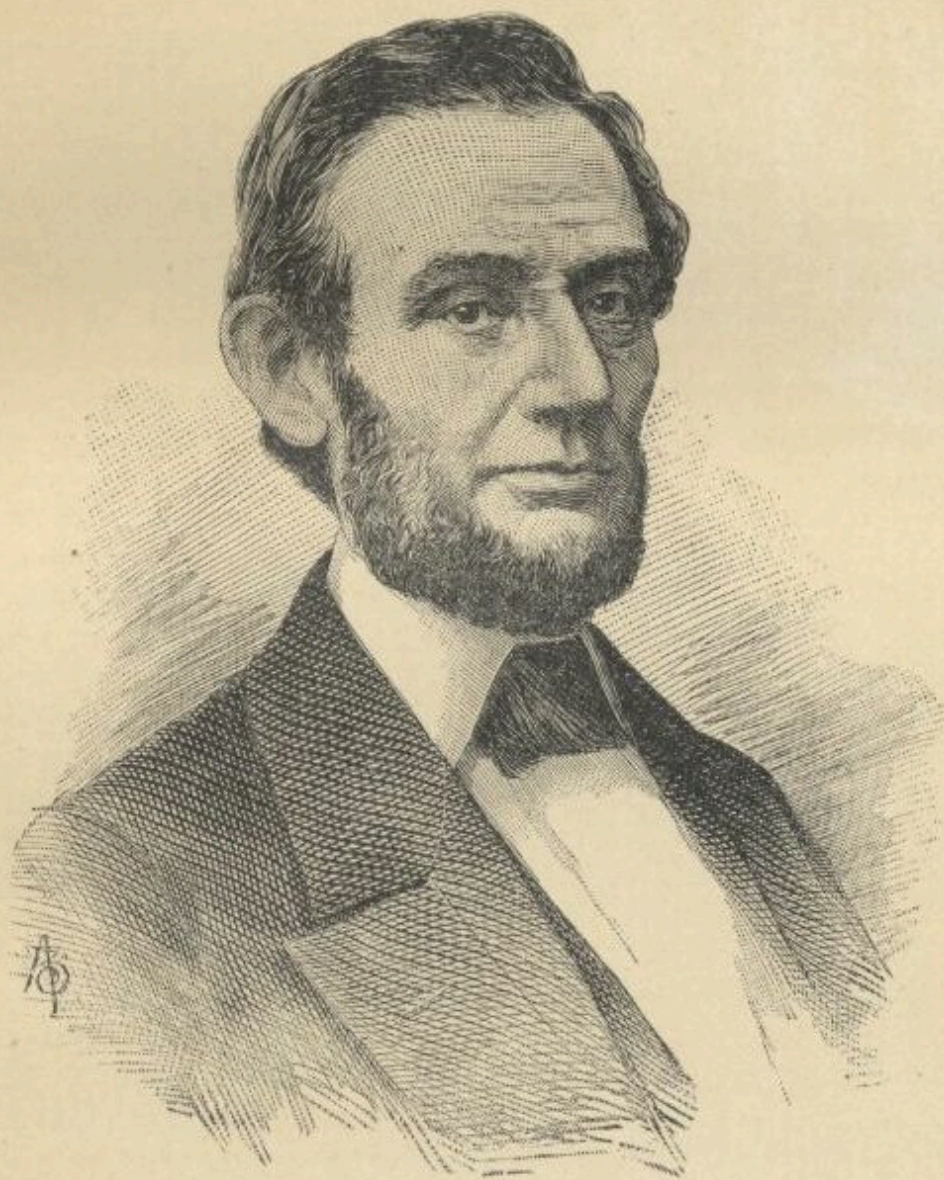
Mr. Lincoln closed his speech by referring to the "New Departure" of the Democracy—to the charge he had made, in his 16th of June speech, touching "the existence of a Conspiracy to Perpetuate and Nationalize Slavery"—which Mr. Douglas had not contradicted—and, said he, "on his own tacit admission I renew that charge. I charge him with having been a party to that Conspiracy, and to that deception, for the sole purpose of Nationalizing Slavery."

This closed the series of preliminary speeches in the canvass. But they only served to whet the moral and intellectual and political appetite of the

public for more. It was generally conceded that, at last, in the person of Mr. Lincoln, the "Little Giant" had met his match.

On July 24, Mr. Lincoln opened a correspondence with Mr. Douglas, which eventuated in an agreement between them, July 31st, for joint-discussions, to take place at Ottawa, Freeport, Jonesboro, Charleston, Galesburgh, Quincy, and Alton, on fixed dates in August, September and October—at Ottawa, Mr. Douglas to open and speak one hour, Mr. Lincoln to have an hour and a half in reply, and Mr. Douglas to close in a half hour's speech; at Freeport, Mr. Lincoln to open and speak for one hour, Mr. Douglas to take the next hour and a half in reply, and Mr. Lincoln to have the next half hour to close; and so on, alternating at each successive place, making twenty-one hours of joint political debate.

To these absorbingly interesting discussions, vast assemblages listened with breathless attention; and to the credit of all parties be it said, with unparalleled decorum. The People evidently felt that the greatest of all political principles—that of Human Liberty—was hanging on the issue of this great political contest between intellectual giants, thus openly waged before the World—and they accordingly rose to the dignity and solemnity of the occasion, vindicating by their very example the sacredness with which the Right of Free Speech should be regarded at all times and everywhere.



ABRAHAM LINCOLN.

CHAPTER V.

THE PRESIDENTIAL CONTEST OF 1860— THE CRISIS APPROACHING.

The immediate outcome of the remarkable joint-debate between the two intellectual giants of Illinois was, that while the popular vote stood 124,698 for Lincoln, to 121,130 for Douglas—showing a victory for Lincoln among the People—yet, enough Douglas-Democrats were elected to the Legislature, when added to those of his friends in the Illinois Senate, who had been elected two years before, and "held over," to give him, in all, 54 members of both branches of the Legislature on joint ballot, against 46 for Mr. Lincoln. Lincoln had carried the people, but Douglas had secured the Senatorial prize for which they had striven—and by that Legislative vote was elected to succeed himself in the United States Senate. This result was trumpeted throughout the Union as a great Douglas victory.

During the canvass of Illinois, Douglas's friends had seen to it that nothing on their part should be wanting to secure success. What with special car trains, and weighty deputations, and imposing processions, and flag raisings, the inspiration of music, the booming of cannon, and the eager shouts of an enthusiastic populace, his political journey through Illinois had been more like a Royal Progress than anything the Country had yet seen; and now that his reelection was accomplished, they proposed to make the most of it—to extend, as it were, the sphere of his triumph, or vindication, so that it would include not the State alone, but the Nation—and thus so accentuate and enhance his availability as a candidate for the Democratic Presidential nomination of 1860, as to make his nomination and election to the Presidency of the United States an almost foregone conclusion.

The programme was to raise so great a popular tidal-wave in his interest, as would bear him irresistibly upon its crest to the White House. Accordingly, as the idol of the Democratic popular heart, Douglas, upon his

return to the National Capital, was triumphantly received by the chief cities of the Mississippi and the Atlantic sea-board. Hailed as victor in the great political contest in Illinois—upon the extended newspaper reports of which, the absorbed eyes of the entire nation, for months, had greedily fed—Douglas was received with much ostentation and immense enthusiasm at St. Louis, Memphis, New Orleans, New York, Philadelphia, Baltimore and Washington. Like the "Triumphs" decreed by Rome, in her grandest days, to the greatest of her victorious heroes, Douglas's return was a series of magnificent popular ovations,

In a speech made two years before this period, Mr. Lincoln, while contrasting his own political career with that of Douglas, and modestly describing his own as "a flat failure" had said: "With him it has been one of splendid success. His name fills the Nation, and is not unknown even in foreign lands. I affect no contempt for the high eminence he has reached. So reached, that the oppressed of my species might have shared with me in the elevation, I would rather stand on that eminence than wear the richest crown that ever pressed a monarch's brow." And now the star of Douglas had reached a higher altitude, nearing its meridian splendor. He had become the popular idol of the day.

But Douglas's partial victory—if such it was—so far from settling the public mind and public conscience, had the contrary effect. It added to the ferment which the Pro-Slavery Oligarchists of the South—and especially those of South Carolina—were intent upon increasing, until so grave and serious a crisis should arrive as would, in their opinion, furnish a justifiable pretext in the eyes of the World for the contemplated Secession of the Slave States from the Union.

Under the inspiration of the Slave Power, and in the direct line of the Dred Scott decision, and of the "victorious" doctrine of Senator Douglas, which he held not inconsistent therewith, that the people of any Territory of the United States could do as they pleased as to the institution of Slavery within their own limits, and if they desired the institution, they had the right by local legislation to "protect and encourage it," the Legislature of the Territory of New Mexico at once (1859) proceeded to enact a law "for the protection of property in Slaves," and other measures similar to the prevailing Slave Codes in the Southern States.

The aggressive attitude of the South—as thus evidenced anew—naturally stirred, to their very core, the Abolition elements of the North; on the other hand, the publication of Hinton Rowan Helper's "Impending Crisis," which handled the Slavery question without gloves, and supported its views with statistics which startled the Northern mind, together with its alleged indorsement by the leading Republicans of the North, exasperated the fiery Southrons to an intense degree. Nor was the capture, in October, 1859, of Harper's Ferry, Virginia, by John Brown and his handful of Northern Abolitionist followers, and his subsequent execution in Virginia, calculated to allay the rapidly intensifying feeling between the Freedom-loving North and the Slaveholding South. When, therefore, the Congress met, in December, 1859, the sectional wrath of the Country was reflected in the proceedings of both branches of that body, and these again reacted upon the People of both the Northern and Southern States, until the fires of Slavery Agitation were stirred to a white heat.

The bitterness of feeling in the House at this time, was shown, in part, by the fact that not until the 1st of February, 1860, was it able, upon a forty-fourth ballot, to organize by the election of a Speaker, and that from the day of its meeting on the 5th of December, 1859, up to such organization, it was involved in an incessant and stormy wrangle upon the Slavery question.

So also in the Democratic Senate, the split in the Democratic Party, between the Lecompton and Anti-Lecompton Democracy, was widened, at the same time that the Republicans of the North were further irritated, by the significantly decisive passage of a series of resolutions proposed by Jefferson Davis, which, on the one hand, purposely and deliberately knifed Douglas's "Popular Sovereignty" doctrine and read out of the Party all who believed in it, by declaring "That neither Congress nor a Territorial Legislature, whether by direct legislation, or legislation of an indirect and unfriendly character, possesses power to annul or impair the Constitutional right of any citizen of the United States to take his Slave-property into the common Territories, and there hold and enjoy the same while the Territorial condition remains," and, on the other, purposely and deliberately slapped in the face the Republicans of the North, by declaring—among other things "That in the adoption of the Federal Constitution, the States adopting the same, acted severally as Free and Independent sovereignties, delegating a portion of their powers to be exercised by the Federal Government for the

increased security of each against dangers, domestic as well as foreign; and that any intermeddling by any one or more States or by a combination of their citizens, with the domestic institutions of the others, on any pretext whatever, political, moral, or religious, with a view to their disturbance or subversion, is in violation of the Constitution, insulting to the States so interfered with, endangers their domestic peace and tranquillity—objects for which the Constitution was formed—and, by necessary consequence, tends to weaken and destroy the Union itself."

Another of these resolutions declared Negro Slavery to be recognized in the Constitution, and that all "open or covert attacks thereon with a view to its overthrow," made either by the Non-Slave-holding States or their citizens, violated the pledges of the Constitution, "are a manifest breach of faith, and a violation of the most solemn obligations."

This last was intended as a blow at the Freedom of Speech and of the Press in the North; and only served, as was doubtless intended, to still more inflame Northern public feeling, while at the same time endeavoring to place the arrogant and aggressive Slave Power in an attitude of injured innocence. In short, the time of both Houses of Congress was almost entirely consumed during the Session of 1859-60 in the heated, and sometimes even furious, discussion of the Slavery question; and everywhere, North and South, the public mind was not alone deeply agitated, but apprehensive that the Union was founded not upon a rock, but upon the crater of a volcano, whose long-smouldering energies might at any moment burst their confines, and reduce it to ruin and desolation.

On the 23rd of April, 1860, the Democratic National Convention met at Charleston, South Carolina. It was several days after the permanent organization of the Convention before the Committee on Resolutions reported to the main body, and not until the 30th of April did it reach a vote upon the various reports, which had in the meantime been modified. The propositions voted upon were three:

First, The Majority Report of the Committee, which reaffirmed the Cincinnati platform of 1856—with certain "explanatory" resolutions added, which boldly proclaimed: That the Government of a Territory organized by an Act of Congress, is provisional and temporary; and, during its existence,

all citizens of the United States have an equal right to settle with their property in the Territory, without their rights, either of person or property, being destroyed or impaired by Congressional or Territorial Legislation;" that "it is the duty of the Federal Government, in all its departments, to protect, when necessary, the rights of persons and property in the Territories, and wherever else its Constitutional authority extends;" that "when the settlers in a Territory, having an adequate population, form a State Constitution, the right of Sovereignty commences, and, being consummated by admission into the Union, they stand on an equal footing with the people of other States, and the State thus organized ought to be admitted into the Federal Union, whether its Constitution prohibits or recognizes the institution of Slavery;" and that "the enactments of State Legislatures to defeat the faithful execution of the Fugitive Slave Law, are hostile in character, subversive of the Constitution, and revolutionary in effect." The resolutions also included a declaration in favor of the acquisition of Cuba, and other comparatively minor matters.

Second, The Minority Report of the Committee, which, after re-affirming the Cincinnati platform, declared that "Inasmuch as differences of opinion exist in the Democratic party as to the nature and extent of the powers of a Territorial Legislature, and as to the powers and duties of Congress, under the Constitution of the United States, over the institution of Slavery within the Territories * * * the Democratic Party will abide by the decisions of the Supreme Court of the United States on the questions of Constitutional law."

Third, The recommendation of Benjamin F. Butler, that the platform should consist simply of a re-affirmation of the Cincinnati platform, and not another word.

The last proposition was first voted on, and lost, by 105 yeas to 198 nays. The Minority platform was then adopted by 165 yeas to 138 nays.

The aggressive Slave-holders (Majority) platform, and the Butler Compromise do-nothing proposition, being both defeated, and the Douglas (Minority) platform adopted, the Alabama delegation, under instructions from their State Convention to withdraw in case the National Convention refused to adopt radical Territorial Pro-Slavery resolutions, at once presented a written protest and withdrew from the Convention, and were

followed, in rapid succession, by; the delegates from Mississippi, Louisiana (all but two), South Carolina, Florida, Texas, Arkansas (in part), Delaware (mostly), and Georgia (mostly)—the seceding delegates afterwards organizing in another Hall, adopting the above Majority platform, and after a four days' sitting, adjourning to meet at Richmond, Virginia, on the 11th of June.

Meanwhile, the Regular Democratic National Convention had proceeded to ballot for President—after adopting the two-thirds rule. Thirty-seven ballots having been cast, that for Stephen A. Douglas being, on the thirty-seventh, 151, the Convention, on the 3d of May, adjourned to meet again at Baltimore, June 18th.

After re-assembling, and settling contested election cases, the delegates (in whole or in part) from Virginia, North Carolina, Tennessee, California, Delaware, Kentucky, Maryland and Massachusetts, withdrew from the Convention, the latter upon the ground mainly that there had been "a withdrawal, in part, of a majority of the States," while Butler, who had voted steadily for Jefferson Davis throughout all the balloting at Charleston, gave as an additional ground personal to himself, that "I will not sit in a convention where the African Slave Trade—which is piracy by the laws of my Country—is approvingly advocated"—referring thereby to a speech, that had been much applauded by the Convention at Charleston, made by a Georgia delegate (Gaulden), in which that delegate had said: "I would ask my friends of the South to come up in a proper spirit; ask our Northern friends to give us all our rights, and take off the ruthless restrictions which cut off the supply of Slaves from foreign lands. * * * I tell you, fellow Democrats, that the African Slave Trader is the true Union man (cheers and laughter). I tell you that the Slave Trading of Virginia is more immoral, more unchristian in every possible point of view, than that African Slave Trade which goes to Africa and brings a heathen and worthless man here, makes him a useful man, Christianizes him, and sends him and his posterity down the stream of Time, to enjoy the blessings of civilization. (Cheers and laughter.) * * * I come from the first Congressional District of Georgia. I represent the African Slave Trade interest of that Section. (Applause.) I am proud of the position I occupy in that respect. I believe that the African Slave Trader is a true missionary, and a true Christian. (Applause.) * * * Are you prepared to go back to first principles, and take off your

unconstitutional restrictions, and leave this question to be settled by each State? Now, do this, fellow citizens, and you will have Peace in the Country. * * * I advocate the repeal of the laws prohibiting the African Slave Trade, because I believe it to be the true Union movement. * * * I believe that by re-opening this Trade and giving us Negroes to populate the Territories, the equilibrium of the two Sections will be maintained."

After the withdrawal of the bolting delegates at Baltimore, the Convention proceeded to ballot for President, and at the end of the second ballot, Mr. Douglas having received "two-thirds of all votes given in the Convention" (183) was declared the "regular nominee of the Democratic Party, for the office of President of the United States."

An additional resolution was subsequently adopted as a part of the platform, declaring that "it is in accordance with the true interpretation of the Cincinnati platform, that, during the existence of the Territorial Governments, the measure of restriction, whatever it may be, imposed by the Federal Constitution on the power of the Territorial Legislatures over the subject of the domestic relations, as the same has been, or shall hereafter be, finally determined by the Supreme Court of the United States, should be respected by all good citizens, and enforced with promptness and fidelity by every branch of the General Government."

On the 11th of June, pursuant to adjournment, the Democratic Bolters' Convention met at Richmond, and, after adjourning to meet at Baltimore, finally met there on the 28th of that month—twenty-one States being, in whole or in part, represented. This Convention unanimously readopted the Southern-wing platform it had previously adopted at Charleston, and, upon the first ballot, chose, without dissent, John C. Breckinridge of Kentucky, as its candidate for the Presidential office.

In the meantime, however, the National Conventions of other Parties had been held, viz.: that of the Republican Party at Chicago, which, with a session of three days, May 16-18, had nominated Abraham Lincoln of Illinois and Hannibal Hamlin of Maine, for President and Vice-President respectively; and that of the "Constitutional Union" (or Native American) Party which had severally nominated (May 19) for such positions, John Bell of Tennessee, and Edward Everett of Massachusetts.

The material portion of the Republican National platform, adopted with entire unanimity by their Convention, was, so far as the Slavery and Disunion questions were concerned, comprised in these declarations:

First, That the history of the nation, during the last four years, has fully established the propriety and necessity of the organization and perpetuation of the Republican Party; and that the causes which called it into existence are permanent in their nature, and now, more than ever before, demand its peaceful and Constitutional triumph.

Second, That the maintenance of the principle, promulgated in the Declaration of Independence, and embodied in the Federal Constitution, "that all men are created equal; that they are endowed by their Creator with certain inalienable rights; that among these are Life, Liberty and the pursuit of Happiness; that to secure these rights, governments are instituted among men, deriving their just powers from the consent of the governed," is essential to the preservation of our Republican institutions; and that the Federal Constitution, the Rights of the States, and the Union of the States must and shall be preserved.

Third, That to the Union of the States, this Nation owes its unprecedented increase in population, its surprising development of material resources, its rapid augmentation of wealth, its happiness at home, and its honor abroad; and we hold in abhorrence all schemes for Disunion, come from whatever source they may: And we congratulate the Country that no Republican member of Congress has uttered or countenanced the threats of Disunion, so often made by Democratic members, without rebuke, and with applause, from their political associates; and we denounce those threats of Disunion, in case of a popular overthrow of their ascendancy, as denying the vital principles of a free Government, and as an avowal of contemplated Treason, which it is the imperative duty of an indignant People, sternly to rebuke and forever silence.

Fourth, That the maintenance inviolate of the rights of the States, and especially the right of each State, to order and control its own domestic institutions according to its own judgment exclusively, is essential to that balance of powers on which the perfection and endurance of our political fabric depend; and we denounce the lawless invasion, by armed force, of

any State or Territory, no matter under what pretext, as among the gravest of crimes.

Fifth, That the present Democratic Administration has far exceeded our worst apprehensions, in its measureless subserviency to the exactions of a Sectional interest, as especially evinced in its desperate exertions to force the infamous Lecompton Constitution upon the protesting people of Kansas; in construing the personal relation between master and servant to involve an unqualified property in persons; in its attempted enforcement, everywhere, on land and sea, through the intervention of Congress and of the Federal Courts, of the extreme pretensions of a purely local interest; and in its general and unvarying abuse of the power intrusted to it by a confiding People.

* * * * *

Seventh, That the new dogma that the Constitution, of its own force, carries Slavery into any or all of the Territories of the United States, is a dangerous political heresy, at variance with the explicit provisions of that instrument itself, with contemporaneous exposition, and with legislation and judicial precedent; is revolutionary in its tendency and subversive of the peace and harmony of the Country.

Eighth, That the normal condition of all the territory of the United States is that of Freedom; that as our Republican fathers, when they had abolished Slavery in all our National Territory, ordained that "No person should be deprived of life, liberty, or property, without due process of law," it becomes our duty, by legislation, whenever such legislation is necessary, to maintain this provision of the Constitution against all attempts to violate it; and we deny the authority of Congress, of a Territorial Legislature, or of any individuals, to give legal existence to Slavery in any Territory of the United States.

Ninth, That we brand the recent re-opening of the African Slave-trade under the cover of our National flag, aided by perversions of judicial power, as a crime against humanity and a burning shame to our Country and Age; and we call upon Congress to take prompt and efficient measures for the total and final suppression of that execrable traffic.

Tenth, That in the recent vetoes, by their Federal Governors, of the acts of the Legislatures of Kansas and Nebraska, prohibiting Slavery in those Territories, we find a practical illustration of the boasted Democratic principle of Non-Intervention and Popular Sovereignty embodied in the Kansas-Nebraska Bill, and a demonstration of the deception and fraud involved therein.

Eleventh, That Kansas should, of right, be immediately admitted as a State, under the Constitution recently formed and adopted by the House of Representatives.

* * * * *

The National platform of the "Constitutional Union" Party, was adopted, unanimously, in these words:

"Whereas, experience has demonstrated that platforms adopted by the partisan Conventions of the Country have had the effect to mislead and deceive the People, and at the same time to widen the political divisions of the Country, by the creation and encouragement of geographical and Sectional parties; therefore,

"Resolved, That it is both the part of patriotism and of duty to recognize no political principle other than the Constitution of the Country, the Union of the States, and the Enforcement of the Laws, and that, as representatives of the Constitutional Union men of the Country, in National Convention assembled, we hereby pledge ourselves to maintain, protect, and defend, separately and unitedly, these great principles of public liberty and national safety, against all enemies, at home and abroad; believing that thereby peace may once more be restored to the Country, the rights of the people and of the States re-established, and the Government again placed in that condition of justice, fraternity, and equality which, under the example and Constitution of our fathers, has solemnly bound every citizen of the United States to maintain a more perfect Union, establish justice, insure domestic tranquillity, provide for the common defense, promote the general welfare, and secure the blessings of liberty to ourselves and our posterity."

Thus, by the last of June, 1860, the four National Parties with their platforms and candidates were all in the political field prepared for the

onset.

Briefly, the attitude of the standard-bearers representing the platform-principles of their several Parties, was this:

Lincoln, representing the Republicans, held that Slavery is a wrong, to be tolerated in the States where it exists, but which must be excluded from the Territories, which are all normally Free and must be kept Free by Congressional legislation, if necessary; and that neither Congress, nor the Territorial Legislature, nor any individual, has power to give to it legal existence in such Territories.

Breckinridge, representing the Pro-Slavery wing of the Democracy, held that Slavery is a right, which, when transplanted from the Slave-States into the Territories, neither Congressional nor Territorial legislation can destroy or impair, but which, on the contrary, must, when necessary, be protected everywhere by Congress and all other departments of the Government.

Douglas, representing the Anti-Lecompton wing of Democracy, held that whether Slavery be right or wrong, the white inhabitants of the Territories have the sole right to determine whether it shall or shall not exist within their respective limits, subject to the Constitution and Supreme Court decisions thereon; and that neither Congress nor any State, nor any outside persons, must interfere with that right.

Bell, representing the remaining political elements, held that it was all wrong to have any principles at all, except "the Constitution of the Country, the Union of the States, and the Enforcement of the Laws"—a platform which Horace Greeley well described as "meaning anything in general, and nothing in particular."

The canvass that ensued was terribly exciting—Douglas alone, of all the Presidential candidates, bravely taking the field, both North and South, in person, in the hope that the magnetism of his personal presence and powerful intellect might win what, from the start—owing to the adverse machinations, in the Northern States, of the Administration or Breckinridge-Democratic wing—seemed an almost hopeless fight. In the South, the Democracy was almost a unit in opposition to Douglas, holding, as they did, that "Douglas Free-Soilism" was "far more dangerous to the South than

the election of Lincoln; because it seeks to create a Free-Soil Party there; while, if Lincoln triumphs, the result cannot fail to be a South united in her own defense;" while the old Whig element of the South was as unitedly for Bell. In the North, the Democracy were split in twain, three-fourths of them upholding Douglas, and the balance, powerful beyond their numbers in the possession of Federal Offices, bitterly hostile to him, and anxious to beat him, even at the expense of securing the election of Lincoln.

Douglas's fight was that the candidacy and platform of Bell were meaningless, those of both Lincoln and Breckinridge, Sectional, and that he alone bore aloft the standard of the entire Union; while, on the other hand, the supporters of Lincoln, his chief antagonist, claimed that—as the burden of the song from the lips of Douglas men, Bell men, and Breckinridge men alike, was the expression of a "fear that," in the language of Mr. Seward, "if the people elected Mr. Lincoln to the Presidency, they would wake up and find that they had no Country for him to preside over"—"therefore, all three of the parties opposing Mr. Lincoln were in the same boat, and hence the only true Union party, was the party which made no threats of Disunion, to wit, the Republican party."

The October elections of 1860 made it plain that Mr. Lincoln would be elected. South Carolina began to "feel good" over the almost certainty that the pretext for Secession for which her leaders had been hoping in vain for thirty years, was at hand. On the 25th of October, at Augusta, South Carolina, the Governor, the Congressional delegation, and other leading South Carolinians, met, and decided that in the event of Mr. Lincoln's election, that State would secede. Similar meetings, to the same end, were also held about the same time, in others of the Southern States. On the 5th of November—the day before the Presidential election—the Legislature of South Carolina met at the special call of Governor Gist, and, having organized, received a Message from the Governor, in which, after stating that he had convened that Body in order that they might on the morrow "appoint the number of electors of President and Vice-President to which this State is entitled," he proceeded to suggest "that the Legislature remain in session, and take such action as will prepare the State for any emergency that may arise." He went on to "earnestly recommend that, in the event of Abraham Lincoln's election to the Presidency, a Convention of the people of this State be immediately called, to consider and determine for

themselves the mode and measure of redress," and, he continued: "I am constrained to say that the only alternative left, in my judgment, is the Secession of South Carolina from the Federal Union. The indications from many of the Southern States justify the conclusion that the Secession of South Carolina will be immediately followed, if not adopted simultaneously, by them, and ultimately by the entire South. The long-desired cooperation of the other States having similar institutions, for which so many of our citizens have been waiting, seems to be near at hand; and, if we are true to ourselves, will soon be realized. The State has, with great unanimity declared that she has the right peaceably to Secede, and no power on earth can rightfully prevent it."

[Referring to the Ordinance of Nullification adopted by the people of South Carolina, November 24, 1832, growing out of the Tariff Act of 1832—wherein it was declared that, in the event of the Federal Government undertaking to enforce the provisions of that Act: "The people of this State will thenceforth hold themselves absolved from all further obligation to maintain or preserve their political connection with the people of the other States, and will forthwith proceed to organize a separate government, and do all other acts and things which Sovereign and independent States may of right do."]

He proceeded to say that "If, in the exercise of arbitrary power, and forgetful of the lessons of history, the Government of the United States should attempt coercion, it will become our solemn duty to meet force by force"—and promised that the decision of the aforesaid Convention "representing the Sovereignty of the State, and amenable to no earthly tribunal," should be, by him, "carried out to the letter." He recommended the thorough reorganization of the Militia; the arming of every man in the State between the ages of eighteen and forty-five; and the immediate enrollment of ten thousand volunteers officered by themselves; and concluded with a confident "appeal to the Disposer of all human events," in whose keeping the "Cause" was to be entrusted.

That same evening (November 5), being the eve of the election, at Augusta, South Carolina, in response to a serenade, United States Senator Chestnut made a speech of like import, in which, after predicting the election of Mr. Lincoln, he said: "Would the South submit to a Black Republican President, and a Black Republican Congress, which will claim the right to construe the Constitution of the Country, and administer the Government in their own hands, not by the law of the instrument itself, nor

by that of the fathers of the Country, nor by the practices of those who administered seventy years ago, but by rules drawn from their own blind consciences and crazy brains? * * * The People now must choose whether they would be governed by enemies, or govern themselves."

He declared that the Secession of South Carolina was an "undoubted right," a "duty," and their "only safety" and as to himself, he would "unfurl the Palmetto flag, fling it to the breeze, and, with the spirit of a brave man, live and die as became" his "glorious ancestors, and ring the clarion notes of defiance in the ears of an insolent foe!"

So also, in Columbia, South Carolina, Representative Boyce of that State, and other prominent politicians, harangued an enthusiastic crowd that night—Mr. Boyce declaring: "I think the only policy for us is to arm, as soon as we receive authentic intelligence of the election of Lincoln. It is for South Carolina, in the quickest manner, and by the most direct means, to withdraw from the Union. Then we will not submit, whether the other Southern States will act with us or with our enemies. They cannot take sides with our enemies; they must take sides with us. When an ancient philosopher wished to inaugurate a great revolution, his motto was to dare! to dare!"

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